

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 08/21/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

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SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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Zoom hearing information

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01461
CASE NAME: KANWAL SODHI VS. JONATHAN BORNSTEIN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: BORNSTEIN, JONATHAN

TENTATIVE RULING:

Before the court is Defendants' unopposed Demurrer to the 1st Amended Complaint. Defendants argue that the demurrer should be sustained without leave to amend because the 1st Amended Complaint fails to plead compliance with the Tenant Protection Act's prerequisites. Defendants argue that Plaintiff's notice to terminate was defective and therefore void. Plaintiff cannot amend the termination notice that was previously served.

California Rule of Court 8.54 (c) provides, "A failure to oppose a motion may be deemed a consent to the granting of the motion."

The Demurrer is **sustained without leave to amend**.

2. 9:00 AM CASE NUMBER: C22-02021

CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO

*HEARING ON MOTION IN RE: STRIKE CERTAIN IMPROPER MATTER FROM THE NOTICE OF LIEN
FILED BY DEFENDANTS ON 3/26/26

FILED BY: ZHENG, XIAO YI

TENTATIVE RULING:

Before the Court is a motion by plaintiff Ziao Yi Zheng to strike a notice of lien filed by defendants Michael Cisternino, Kristen Morcos, and KMOR LLC. For the reasons set forth, the motion is **denied**.

Background

This action involves a dispute over a real estate transaction. In his operative first amended complaint ("FAC"), Plaintiff Ziao Yi Zheng has sued The Kase Group, which he alleges is a licensed real estate brokerage firm ("Kase"), Michael Cisternino ("Cisternino"), alleged to be a licensed real estate broker, KMOR, LLC dba F45 Training Moraga ("KMOR"), Kristen Morcos ("Morcos"), alleged to be affiliated with KMOR prior to its formation and a managing member after it was formed in 2020, and Jacob Abusharkh ("Abusharkh"), also alleged to be a California real estate licensee. (FAC ¶¶ 2-6.) Plaintiff alleges he is the trustee of the Zheng Family Trust which is the owner of a commercial building in a shopping center located in Moraga (the "Property") where the F45 Training Moraga gym was to become a tenant. (FAC ¶ 1.) Plaintiff alleges that Michael Cisternino was a Senior Vice President or otherwise an associate in the Kase firm and a managing principal of KMOR at the time of the transactions at issue in the FAC. (FAC ¶ 3.)

Plaintiff asserts fifteen causes of action in the FAC arising out of an exclusive six-month listing agreement with Kase for the sale of the Property, and the subsequent lease transaction with an option to purchase by which KMOR became a lessee and tenant at the Property. Plaintiff alleges, among other things, the nondisclosure of Cisternino's interest in KMOR when he presented KMOR's proposals for the Property as the only interest received in the six-month period of the listing and asserts breaches of fiduciary duties and fraud or concealment of material facts in connection with the lease transaction with KMOR.

Disputes have arisen over discovery. In connection with such a dispute, this Court awarded sanctions against Zheng and his (now former) counsel in favor of defendant Cisternino. (1/12/2024 Min. Order Adopting Tent. Rul. Awarding \$9,082 in Sanctions.) Plaintiff and his counsel sought review of the order awarding sanctions in the First District Court of Appeal, and the Court of Appeal affirmed the trial court's sanctions order. (1st DCA Order dated 10/8/2025; Remittur filed 12/12/2025.) Plaintiff is now self-represented.

On March 26, 2026, Cisternino filed a Notice of Lien reflecting the \$9,082 sanctions award (the "March Lien"). (3/26/2026 Not. of Lien.) Plaintiff moves the Court for an order striking the March Lien, arguing that the monetary claim subject to the March Lien has been satisfied.

Legal Standards Applicable to Motion to Strike and Analysis

Zheng's motion to strike is made pursuant to Code of Civil Procedure sections 435, 436(a), 436(b), and

437. (Not. Mtn. p. 1, ll. 24-28.) Code of Civil Procedure section 436 provides: "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. [¶] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Emphasis added.)

A motion pursuant to Code of Civil Procedure section 435, as referenced in section 436, addresses specific types of pleadings which may be the subject of a motion to strike. Code of Civil Procedure section 435 provides in pertinent part: "(a) As used in this section: [¶] (1) The term 'complaint' includes a cross-complaint. [¶] (2) The term 'pleading' means a demurrer, answer, complaint, or cross-complaint. [¶] (b) [¶] (1) Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e). [¶] (2) A notice of motion to strike the answer or the complaint, or a portion thereof, shall specify a hearing date set in accordance with Section 1005. [¶] (3) A notice of motion to strike a demurrer, or a portion thereof, shall set the hearing thereon concurrently with the hearing on the demurrer." (Code Civ. Proc. § 435(a) and (b).)

This is consistent with case law and Code of Civil Procedure section 437 which treat determination of a motion to strike in the same manner as a demurrer. Code of Civil Procedure section 437 states: "(a) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. [¶] (b) Where the motion to strike is based on matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (Emphasis added.) (*See also Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255, and stating "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true."].)

In addition to the definition in Code of Civil Procedure section 435(a)(2), pleadings are defined in other provisions of the Code of Civil Procedure. "Under the Code of Civil Procedure, pleadings are defined as 'the formal allegations by the parties of their respective claims and defenses, for the judgment of the court.'" (Code Civ. Proc., § 420.) "The pleadings allowed in civil actions are complaints, demurrers, answers, and cross-complaints." (*Id.*, § 422.10.)" (*Cortina v. North American Title Co.* (2026) 120 Cal. App. 5th 1030, 1140.)

The March Lien is not a "pleading" that is properly subject to a motion to strike under Code of Civil Procedure sections 435 through 437. The Court does not need to reach the merits of the motion as it is not the proper procedural vehicle for challenging the merits of the March Lien. On this ground, the motion to strike is **denied**.

The Court also notes that it is in the Court's discretion whether to strike a pleading or portions of a pleading under Code of Civil Procedure section 436. (Code Civ. Proc. § 436(a) [court "may" strike]; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.) The motion is not supported by a declaration and thus lacks evidence. Alternatively, the Court exercises its discretion not to strike the March Lien on the record before the

Court, and the motion is **denied** on that ground.

The Court observes that Plaintiff is now self-represented. (8/8/2025 Sub. of Atty.) Plaintiff does not identify himself as an attorney with a California state bar number. A trustee of a family trust may represent himself if the trustee is the sole beneficiary of the family trust. If there are other beneficiaries of a family trust besides the trustee, the trustee cannot be self-represented, as in that circumstance, the trustee would be representing not only himself but also the other beneficiaries of the trust. A non-attorney cannot represent other parties. (See *Donkin v. Donkin* (2020) 47 Cal.App.5th 469, 472 [citing the leading case *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, and stating, "*Ziegler's* rationale is that the trustee was effectively speaking for the interests of the trust beneficiaries in the lawsuit against the mobilehome park and, as a nonlawyer, improperly representing those beneficiaries. (*Ziegler, supra*, 64 Cal.App.4th at pp. 548–549; cf. *Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1519–1520 [a self-represented trustee does not engage in the unauthorized practice of law under *Ziegler* when he is also the sole beneficiary, and thus is not representing the interests of another].)".) The Court on this motion does not have evidence showing whether Zheng is the sole beneficiary of the family trust, and the issue of whether Zheng can be self-represented is moot on the instant motion because the motion fails for other reasons. The Court anticipates issuing an order to show cause to clarify Zheng's status and ability to remain self-represented in pursuing his claims as trustee of his family trust.

3. 9:00 AM CASE NUMBER: C22-02613
CASE NAME: JANE DOE 1 VS. ACALANES UNION HIGH SCHOOL DISTRICT
FOR PROTECTIVE ORDER LIMITING DEPOSITION TESTIMONY
FILED BY: DOE 1, JANE
TENTATIVE RULING:

The motion for a protective order prohibiting or limiting the deposition testimony of "M.M." (as referenced in the Reply papers) is denied. The request for subject matter limits on questioning is denied. The motion for sanctions is also denied.

4. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
CONT'D PER TR ON 7/10/26
FILED BY:
TENTATIVE RULING:

Continued by the Court to September 11, 2026.

5. 9:00 AM CASE NUMBER: C24-01630
CASE NAME: ROBERT MILLER VS. SOPHIE HAN
AWARDING ATTORNEY FEES AND COSTS AND ACCRUED INTEREST
FILED BY: MILLER, ROBERT A.
TENTATIVE RULING:

The unopposed motion for an order awarding Attorneys' Fees and Costs and accrued interest is

granted, for attorneys' fees and costs in the amount of \$32,958.29 plus accrued interest since April 18, 2022 – April 18, 2026 in the amount of \$52,912.21, in addition to the judgment amount previously ordered of \$132,282.32. Plaintiff shall lodge with the court a proposed amended judgment.

6. 9:00 AM CASE NUMBER: C25-02941

CASE NAME: BRETT DALY VS. MICHELLE DALY

COMPLAINT

FILED BY: DALY, MICHELLE L.

TENTATIVE RULING:

The Court determines that this action concerns the internal affairs of a trust and orders the case transferred to the Probate Department to be assigned pursuant to its ordinary assignment and calendaring procedures. Accordingly, Defendants Lawrence A. Daly Jr. and Michelle L. Daly's Demurrer to Plaintiff Brett W. Daly's complaint is dropped from calendar without prejudice to Defendants' ability to raise these challenges in the Probate Department.

Background

In September 1975, Lawrence A. Daly Sr. and Charlotte Doyne Daly acquired title as joint tenants to real property at 1199 Ridgewood Drive, Concord, California 94518 (the "Property"). Following the dissolution of their marriage, Lawrence Sr. conveyed his full interest in the Property to Charlotte as her sole and separate property. On May 23, 1994, Charlotte executed the Charlotte Doyne Daly Revocable Living Trust, naming herself as Trustor and Trustee, and designating her three sons, Plaintiff Brett W. Daly, Defendant Lawrence Daly Jr., and Wayne W. Daly, as equal beneficiaries upon her death. On that same date, Charlotte also executed a will consistent with this equal testamentary distribution plan.

Between 1998 and 2002, title to the Property underwent multiple transfers. In August 1998, Charlotte, as Trustee of the 1994 Trust, executed an grant deed conveying the Property to Lawrence Jr. as his separate property. In November 2002, Lawrence Jr. reconveyed the Property to Charlotte as Trustee of the 1994 Trust. The same day, Charlotte, as Trustee, executed a quitclaim deed transferring the Property to Lawrence Jr. and Michelle Daly, as Trustees of the LJ Trust dated April 15, 2001, for no monetary consideration. In June 2011, Charlotte executed an "Estoppel Affidavit" purporting to affirm that the 2002 quitclaim deed was intended as an absolute conveyance.

Plaintiff Brett Daly alleges that Charlotte never intended to permanently divest herself of ownership or alter her estate plan providing equal shares to her three sons. Instead, Plaintiff asserts that Lawrence exercised undue influence, coercion, and manipulation over Charlotte to induce her to transfer the Property to his trust under the false premise that it was a temporary protective measure against creditor collection activity. Plaintiff further alleges that Lawrence's payoff of Charlotte's approximately \$100,175 mortgage was understood by Charlotte as a gift of family support rather than consideration for a purchase. Relying on the understanding that the family estate remained intact, Plaintiff allegedly invested over \$96,000 in maintenance and substantial home improvements to the Property while his son lived there as Charlotte's caregiver.

Charlotte died in May 2024. Plaintiff alleges he only discovered the transfer of the Property to the LJ Trust around the time of Charlotte's death, having previously been kept in the dark by Lawrence. Following the death, Lawrence asserted exclusive ownership of the Property and offered Plaintiff a

\$150,000 buyout in exchange for relinquishing claims, while threatening to dispose of the Property if Plaintiff would not agree.

Plaintiff filed this action on October 9, 2025 asserting causes of action for quiet title, cancellation of instruments, constructive trust, financial elder abuse, undue influence, unjust enrichment, fraudulent inducement, declaratory relief, and partition of real property.

Internal Affairs of the Trust

Under Probate Code section 17000(a), "[t]he superior court having jurisdiction over the trust pursuant to this part has exclusive jurisdiction of proceedings concerning the internal affairs of trusts." "Exclusive jurisdiction" under section 17000 "refers only to whether a matter should be heard in a superior court's probate department or in another department of that same superior court." (*Capra v. Capra* (2020) 58 Cal.App.5th 1072, 1084.) "It is intended that the department of the superior court that customarily deals with probate matters will exercise the exclusive jurisdiction relating to internal trust affairs provided by subdivision (a)." (Law Revision Commission Comments, Prob. Code, § 17000; see also *Saks v. Damon Raike & Co.* (1992) 7 Cal.App.4th 419, 429–430.)

"Proceedings concerning the internal affairs of a trust include, *but are not limited to*, proceedings for any of the following purposes: (1) Determining questions of construction of a trust instrument. (2) Determining the existence or nonexistence of any immunity, power, privilege, duty, or right. (3) Determining the validity of a trust provision. (4) Ascertaining beneficiaries and determining to whom property shall pass or be delivered upon final or partial termination of the trust, to the extent the determination is not made by the trust instrument. (5) Settling the accounts and passing upon the acts of the trustee, including the exercise of discretionary powers. (6) Instructing the trust. (7) Compelling the trustee to [do certain acts.]" (Prob. Code § 17200(b), *emphasis added*.)

While the civil division may have jurisdiction over the elder abuse claims, some of Plaintiff's claims appear to be "internal affairs of a trust." The gravamen of the complaint is Lawrence Daly, Jr.'s asserted exercise of undue influence over Charlotte Daly during her life to obtain Trust property to which he was not entitled. (See Compl., ¶¶ 14–20.) The causes of action asserted in the complaint, including quiet title, cancellation of instrument, constructive trust, undue influence, etc., revolve around the internal affairs and administration of the Trust. The relief Plaintiff seeks makes this apparent, as he prays for an order cancelling the 2002 quitclaim deed and 2011 estoppel affidavit, imposing a constructive trust over the Property for the benefit of the beneficiaries consistent with the 1994 Revocable Living Trust, and declaring that he holds an equitable one-third interest under the Trust. (Compl., Prayer, ¶¶ B–E.)

The claims asserted in this case arguably implicate matters enumerated in Probate Code section 17200(b), including determining the existence or nonexistence of any power, duty, or right to maintain these claims as a remainder beneficiary (Prob. Code, § 17200(b)(2)) ascertaining beneficiaries and determining to whom the Property shall pass upon the termination of the Trust (Prob. Code, § 17200(b)(4)), and passing upon the lifetime acts and conveyances executed by the trust (Prob. Code, § 17200(b)(5).) Transferring this action to the Probate Department is therefore appropriate so that these issues can be resolved in the proper forum.

Disposition

This case is **ordered transferred** to the Probate Department, and Defendants' demurrer is **dropped**

from calendar without prejudice.

NOTE: Effective August 21, 2026, the matter is assigned for all purposes to Dept. 30, the Hon. Virginia George. The case will be on “To Set” on December 15, 2026, at 9:00 a.m. in Dept. 30.

7. 9:00 AM CASE NUMBER: C25-03537
CASE NAME: KARL BROWNEE VS. CALIFORNIA COMMUNITY HOUSING AGENCY
COMPLAINT
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

The hearing on defendant’s demurrer is rendered moot by the Plaintiff’s filing of a First Amended Complaint on August 10, 2026.

8. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
TO STRIKE COMPLAINT / CONT'D PER TR OF 7/10/2026
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Roman Kalnytskyi’s special motion to strike the complaint of plaintiff Andrei Romanenko under Code of Civil Procedure section 425.16.

Factual Allegations and Background

Plaintiff Andrei Romanenko (“Plaintiff”) is an attorney who specializes in immigration and nationality law. In June 2022, Defendant Roman Kalnytskyi, (“Defendant”) retained Plaintiff to represent him in preparing and filing a form for immigration benefits in the U.S. for \$1,000. Plaintiff agreed to credit the \$1,000 fee for this work towards a future retainer agreement for representation in immigration court, if Defendant needed such representation later. In October 2022, Defendant retained Plaintiff to represent him in immigration court in removal proceedings for a flat fee of \$12,000. Plaintiff performed work for Defendant under the terms of the agreement.

In March 2024, Defendant terminated Plaintiff’s representation and requested a refund. Plaintiff accounted for the time spent on Defendant’s matter and issued a check for the balance of the unearned fees per his calculation. Defendant disagreed as to the amount that should have been returned.

On January 20, 2025, Defendant posted a one-star review on Google Maps with a lengthy description of his view of Plaintiff’s handling of his case and his problems therewith. (The specific statements at issue will be discussed in detail below.) Plaintiff emailed Defendant advising him that the review contained “untrue and defamatory statements” and requested that it be removed. Plaintiff also indicated that he would sue Defendant for defamation.

Thereafter, on February 13, 2025, Defendant posted a one-star review about Plaintiff on Yelp which contained statements Plaintiff believes were false and defamatory. On August 25, 2025, Defendant

posted another one-star review on Avvo which also contained false and defamatory statements, per Plaintiff's position. On December 22, 2025, Defendant reposted a one-star review about Plaintiff on Avvo, again with objectionable statements.

Plaintiff alleges that all the above reviews contain false and defamatory statements. Accordingly, Plaintiff filed his Complaint on January 20, 2026, asserting six causes of action: (1) defamation, (2) false light, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, (5) declaratory relief, and (6) defamation (against Does 1-10). The first four causes of action are all based on the postings outlined above and the specific statements contained therein listed in the Complaint. The declaratory relief cause of action seeks to have the statements outlined in the Complaint which are deemed defamatory removed from the websites and Defendant ordered to refrain from posting those statements elsewhere in the future.

Defendant makes a special motion to strike Plaintiff's complaint in its entirety under Code of Civil Procedure section 425.16 ("anti-SLAPP motion") as based on free speech and protected activity under that statute.

The Two-Step Analysis for anti-SLAPP Motions

Code of Civil Procedure § 425.16(b)(1) provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

Section 425.16(e) lists activities that qualify as "an act in furtherance of a person's right of petition or free speech" under the statute. (Code of Civ. Proc. § 425.16(e)(1)-(4).) In *Baral v. Schnitt* (2016) 1 Cal.5th 376, the California Supreme Court explained the two step approach courts take in ruling on an anti-SLAPP motion: "First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation omitted.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Id.* at 384-385.)

The purpose of the anti-SLAPP statute is to encourage participation in matters of public importance and prevent meritless litigation aimed at chilling the exercise of constitutional free speech and petitioning rights under the First Amendment. (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 ("*Park*").)

Standing

Defendant argues that Plaintiff lacks standing to bring his claims because his reviews on various websites "concern legal services provided by Plaintiff's law office pursuant to written agreement," but Plaintiff "brings this action in his individual capacity, severing the causal link between the challenged statements and any alleged injuries." (Motion at 7:18-21.)

First, Defendant cites no law to support his argument. Every memorandum of points and authorities "must contain a statement of facts, *a concise statement of the law*, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal.

R. Ct. 3.1113 (b).) Rule 3.1113 prevents the “trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

Second, the first retainer agreement submitted by Defendant shows that Defendant “retains Anrei Romanenko ... as legal counsel in connection with the matters described” therein. (Kalnytskyi Decl. Ex. A.) Thus, Defendant’s argument that the agreement was between him and a law firm – as opposed to Mr. Romanenko – is incorrect. At least with relation to the first engagement.

The second retainer agreement does indicate that Defendant is retaining “Law Office of Andrei Romanenko PC,” and not Plaintiff individually. (*Id.* Ex. B.) This difference is of no significance. The statements at issue – discussed in detail below – were directed toward Plaintiff personally. As such, Plaintiff has standing to bring this action for defamation (and related claims) against Defendant.

Analysis

A. Defendant’s Burden Under Prong 1

In the first step, the party bringing the anti-SLAPP motion (Defendant) must satisfy a “threshold burden” by showing that the challenged cause of action arises from protected activity which fits one of the four categories listed in Code of Civil Procedure section 425.16(e). (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) Protected activity includes: “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest,” and communications made “in connection with a public issue or an issue of public interest.” (Code Civ. Proc. §§ 425.16 (e)(3), and (e)(4).) These are the grounds relied on by Defendant.

“A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citation omitted.] Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must *itself* have been in furtherance of the right of petition or free speech.’ [Citations omitted.]” (*Park, supra*, 2 Cal.5th at 1062-1063 [italics in original].) To evaluate the cause of action under the standard in *Park*, “courts should consider the elements of the challenged claim and what actions by the defendant supply those elements, and consequently form the basis for liability.” (*Park, supra*, 2 Cal.5th at 1063, 1064 [protected activity must supply one or more elements of the cause of action challenged by the anti-SLAPP motion to satisfy the first step].) The Court in *Baral* explained that a “claim” for purposes of an anti-SLAPP motion means “allegations of protected activity that are asserted as grounds for relief.” (*Baral, supra*, 1 Cal.5th at 395, italics omitted.)

B. Protected Activity as to 1st Through 4th CoAs

In this case, Plaintiff is alleging claims based on Defendant’s posts to publicly accessible websites, including Google Maps, Yelp, and Avvo. Plaintiff has not disputed that the websites are public websites and a public forum. (*See, e.g., Bently Reserve L.P. v. Papaliolios* (2013) 218 Cal.App.4th 418 [involving Yelp reviews of landlords, where parties did not dispute that Yelp was a public forum]; *Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1366 [“It is settled that ‘Web sites accessible to the public . . . are “public forums” for purposes of the anti-SLAPP statute.’ [Citations omitted.]”].)

Nor does Plaintiff dispute Defendant’s assertion that a consumer’s reviews of professional services,

such as a review of the quality of legal services and billing practices, relate to an issue of public interest. Notably, Plaintiff actually acknowledges that “consumer reviews posted on Google, Yelp, and Avvo are often treated as speech in public forums concerning matters of public interest,” citing *Wong*, supra, 189 Cal.App.4th at 1366-1367.) (Opp. at 6:3-5.)

Instead, Plaintiff argues that “Defendant’s Motion should be denied because it fails to analyze the specific causes of action and allegations actually pled in the Complaint.” (Opp. at 2:8-9) Plaintiff argues that Defendant must ‘analyze the specific claims and allegations challenged by an anti-SLAPP motion rather than evaluating the complaint at a high level of generality,” citing *Baral*, supra, 1 Cal.5th 376 and *Park*, supra, 2 Cal.5th 1057 – without much analysis of either case.

In *Baral*, the California Supreme Court explained the defendant’s burden under the first step:

“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached.” (*Id.* at 396.)

As the *Park* court explained, the “focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.’” (*Park*, supra, 2 Cal.5th at 1063.)

Plaintiff argues that Defendant “makes little or no effort to analyze the individual causes of action asserted in the Complaint,” but instead “attacks the Complaint as a whole and assumes that because the challenged statements were published on review websites, every cause of action automatically falls within the Anti-SLAPP statute.” (Opp. at 125-2:2.)

While the Complaint asserted five causes of action against Defendant, all of them are based on the same allegations – the statements made by Defendant on the various websites. There are no allegations of any other actions by Defendant that support any other claims. For example, the second case of action for false light indicates that it is based on Defendants “statements about Plaintiff on Google, Yelp, and Avvo, the text of which is copies word for word in Paragraphs 19, 21, 22, 23 of this complaint.” (¶ 36.) These are the paragraphs setting out the basis for the defamation claim. Likewise, the IIED and NIED claims are based on Defendant’s “conduct of posting reviews on Google, Yelp and Avvo...” (¶¶ 42, 48.)

“‘A ‘false light’ cause of action is in substance equivalent to a libel [i.e. defamation] claim....’” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1264 citation omitted.) “Indeed, ‘[w]hen a false light claim is coupled with a defamation claim, the false light claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action.’” (*Ibid.* citation omitted.) Likewise, courts have found that when emotional distress claims are based on the same facts as a defamation claim – they stand or fall based on the defamation cause of action. (See e.g. *Readers’s Digest Assn. v. Superior Court* (1984) 37 Cal.3d 244, 265-66; *Flynn v. Higham* (1983) 149 Cal.App.3d 677, 681-82.)

As the *Flynn* court noted, allowing an emotional distress claim “based on the same acts which would

not support a defamation action, would allow plaintiffs to do indirectly that which they could not do directly. It would also render meaningless any defense of trust or privilege.” (*Flynn*, 149 Cal.App.3d 682.) Accordingly, by arguing that none of the statements support a defamation claim – Defendant is contesting each of the separate causes of action as they are all reliant upon the defamation claim.

In addition, there is no indication in Plaintiff’s cited authority that a defendant is required to list all elements for each cause of action and analyze each and every claim individually – when all the claims are based on the same allegations. Defendant argues that each of the statements set forth in the Complaint are protected activity, and thus each of Plaintiff’s claims – all of which rest solely on the propriety of those statements – fail. As the California Supreme Court stated, the “moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (*Baral*, *supra*, 1 Cal.5th at 396.) That is what Defendant has done. There is no requirement that Defendant provide the type of granularity Plaintiff appears to be seeking.

Based on the above, the Court concludes that the weight of authority supports that the reviews of Plaintiff’s business constitute protected activity as written statements made in connection with an issue of public interest, specifically, providing information to consumers potentially considering dealing with Plaintiff’s business and warning consumers not to use Plaintiff’s services in choosing an attorney to represent them. (Code Civ. Proc. § 425.16(e)(3).) For these reasons, Defendant has met his initial burden under Prong 1 of demonstrating the causes of action asserted in the Complaint arise out of protected activity. (Code Civ. Proc. § 425.16(e)(3).)

Alternatively, the statements may meet the standards set forth in *FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133 for application of the catch-all provision. In that case, the Court established a two-part analysis “rooted in the statute’s purpose and internal logic” for courts to determine if the activity in question is protected under the catchall provision of Code of Civil Procedure § 425.16(e)(4): “First, we ask what ‘public issue or [] issue of public interest’ the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest.” (*FilmOn.com*, *supra*, 7 Cal.5th at 149-150.) As further guidance, the Court explained that “a statement is made ‘in connection with’ a public issue when it contributes to—that is, ‘participat[es]’ in or furthers—some public conversation on the issue. [Citation omitted.] But the inquiry of whether a statement contributes to the public debate is one a court can hardly undertake without incorporating considerations of context—including audience, speaker, and purpose.” (*Id.* at 151-52.) “ ‘[C]ontribut[ing] to the public debate’ means the defendant ‘participated in, or furthered, the [public] discourse that ma[de] [the] issue one of public interest.’ ” (*Id.* at 150-51.)

Consumers have an interest in the businesses and attorneys serving their community and whether they should engage the business. Reviews based on personal experience with the attorney or law firm’s services are matters of public interest in that community and contribute to the public discourse about the attorney or law firm to select to represent them, as courts explicitly or implicitly held in the cases which have found protected activity for reviews and public postings about specific businesses in such cases as *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 900; *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146; *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 343-44; *Wong v. Jing*, *supra*, 189 Cal.App.4th at 1366-1367.)

C. Plaintiff's Burden under Prong 2

If the moving party meets its burden of demonstrating the claims are based on protected activity, the Court evaluates Prong 2 and the burden shifts to the plaintiff to demonstrate a probability of prevailing on the merits of the claims. (Code Civ. Proc. § 425.16(b)(1); *Navellier*, supra, 29 Cal.4th at 88.)

“To show a probability of prevailing on his claims, ‘[t]he plaintiff “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” [Citations omitted.] . . . [T]hough the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim.[.]’ [Citation, internal quotation marks omitted.]” (*Daniel v. Wayans* (2017) 8 Cal.App.5th 367, 388.) Plaintiff’s proof on the merits of its claim must be based on competent, admissible evidence. (*Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 788; *Daniel*, supra, 8 Cal.App.5th at 388.)

D. Statements At Issue

In reviewing the Complaint, Plaintiff quotes approximately 22 different statements made by Defendant over the three websites – depending on how you count the quotations. Some quotations contain multiple sentences, while others are merely phrases taken from the postings. There is also some overlap between the statements made on each posting.

In his opposition memorandum, Plaintiff references 8 separate quotations and appears to include a few summaries of statements – in that some of the references do not contain quotations. For example, Plaintiff indicates that Defendant asserted the Plaintiff “continued to withdraw money even after being terminated in order to avoid refunding the client,” which is provided in quotation marks – tracking a quotation from the Complaint. Plaintiff also asserts that Defendant stated: [Plaintiff did not request evidence and did nothing to secure a hearing,] which is not provided in quotation marks. This phrasing also does not appear in the Complaint.

Plaintiff also includes a chart that “summarizes why Plaintiff has at least minimal merit,” but is not “offered as an exhaustive trial presentation but as a roadmap showing that Defendant’s statements are verifiable and disputed.” (Opp. at 13-14.) The chart provides some quotations, some partial quotations, and some summaries of Defendant’s statements. It contains 7 statements or ‘categories.’

Several statements alleged in the Complaint are not contained or referenced in the Opposition. For example, the Complaint notes that the Avvo review contained the statement: “Romanenko assured me that TPS would not affect the asylum case.” (¶ 22.) That statement is not contained in the Opposition. There is a reference in the body of the Opposition that the Complaint alleges that Defendant asserted that Plaintiff [provided incorrect legal advice regarding TPS and asylum proceedings.] Any specific reference to statements by Defendant about the TPS is not included in the chart.

As noted above, since the Court found that Defendant met his burden as to Prong 1 of the analysis the burden has shifted to Plaintiff to demonstrate a probability of prevailing. Given Plaintiff’s burden

under Prong 2, the Court will only address those statements which Plaintiff has put forth in his Opposition and argued he can show a probability of prevailing on. As to any statements set forth in the Complaint which are not identified in the Opposition, Plaintiff has failed to meet this burden – as he has failed to present any evidence or argument to support a showing that there is even minimal merit to the claims that those statements are defamatory.

The Court will use Plaintiff's chart as a guide to analyzing the alleged defamatory statements.

E. Prong 2 – Plaintiff's Probability of Prevailing

As all Plaintiff's claims are based on the defamation cause of action, the Court will focus its inquiry on determining if Plaintiff meets his burden to demonstrate the probability of prevailing on that cause of action.

"The tort of defamation 'involves (a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage.' [Citations omitted.]" (*Taus v. Loftus* (2007) 40 Cal.4th 683, 720.) (*See also Wong, supra*, 189 Cal.App.4th at 1369.).

"In defamation actions generally, factual truth is a defense which it is the defendant's burden to prove." (*City of Costa Mesa v. D'Alessio Investments, LLC* (2013) 214 Cal.App.4th 358, 378.) "Indeed, even 'substantial' truth is a defense." (*Bently Reserve LP v. Papaliolios* (2013) 218 Cal.App.4th 418, 434.) "[T]he law does not require [the defendant] to justify the literal truth of every word of the allegedly defamatory content, nor must we parse each word ... to determine its truthfulness. 'It is sufficient if the defendant proves true the substance of the charge, irrespective of slight inaccuracy in the details, 'so long as the imputation is substantially true so as to justify the 'gist or sting' of the remark.'" (*Ibid.*)

On Prong 2, the Court considers whether "plaintiff has stated a legally sufficient claim and made a *prima facie* factual showing sufficient to sustain a favorable judgment." (*Baral, supra*, 1 Cal.5th at 385.) The Court "accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law." (*Id.*) The Court does not weigh the evidence submitted by defendant against Plaintiff's evidence. (*Daniel, supra*, 8 Cal.App.5th at 388.) Nevertheless, in these circumstances, the "evidence of falsity must be minimally sufficient to support a verdict in plaintiff's favor on the point. [Citation omitted.]" (*Industrial Waste, supra*, 4 Cal.App.5th at 1156-1157.)

Statements At Issue

As noted above, the Court will use the chart provided by Plaintiff as a guide to analyze the statements Plaintiff contends in his Opposition are defamatory and for which he has met his burden to show have 'minimal merit.'

1. Plaintiff "withdraws money without my permission" and "without notifying the client, [Plaintiff] deducts money"

Per the Complaint, the Yelp posting included the following statement: "He does not comply with the terms of the contract, and without notifying the client, he deducts money." The Avvo posting includes a substantially similar statement: "He does not follow the terms of his own contract, withdraws

money without permission....” It also includes the statement: “He continued to withdraw money even after being terminated in order to avoid refunding the client.”

Defendant does not address these statements head-on but appears to argue that these statements were either factually accurate or merely his opinion based on his general arguments about the entirety of the Complaint.

Whether a statement is a “fact” or an “opinion” is not dispositive of whether plaintiff can state a cause of action for defamation. “ ‘[A] statement that implies a false assertion of fact, even if couched as an opinion, can be actionable.’ ” (*Dickinson v. Cosby* (2019) 37 Cal.App.5th 1138, 1163 [quoting *McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 112]) A statement of opinion can be actionable if “a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact.” (*Id.* [quoting *Franklin v. Dynamic Details, Inc.* (2004) 116 Cal.App.4th 375, 385])

Courts apply a totality of the circumstances test to determine whether the statement implies a false assertion of fact by evaluating the language of the statement and the context in which it was made, including the audience to whom it was stated. (*Id.*) If the statement discloses facts that are false as the basis for the opinion, or if the statement implies there are unstated facts to support the opinion and those facts are false, the statement can be actionable as defamation. (*Id.* at 1163-64)

Plaintiff argues that the evidence shows that these statements were and are false. The retainer agreement regarding representation in immigration court (Retainer 2) indicates that Plaintiff was being retained for a flat fee of \$12,000. (Ex. B at ¶ 2.) Retainer 2 makes clear that the client (Defendant) may discontinue Plaintiff’s services at any time. (*Id.* ¶ 5.) It also states: “Client has the right to ... a refund of any amount of the fee **that has not been earned** in the event the representation is terminated or the services for which the flat fee has been paid are not completed.” (*Id.* ¶ 11, emphasis added.) Retainer 2 also lists the rates for services: \$500/hour for attorneys and \$200/hour for paralegals. (*Id.* ¶ 3.)

It is undisputed that at some point Defendant terminated Plaintiff’s services. At that time, Plaintiff calculated the amount of time spent on the file, multiplied by the applicable hourly rates, and deducted that amount from the \$12,000 flat fee. (Romanenko Decl. ¶ 7-9.)

Defendant argues that the hourly rates only applied to ‘additional costs’ – such as translations, notary fees, interpreter fees, travel, and outside experts, all of which require advance permission from the client before being incurred – apparently relying upon paragraph 3 of Retainer 2. He argues that no “provision of [Retainer 2] converts, reduces, or recalculates that \$12,000 flat fee into an hourly-rate obligation,” and that the post-termination accounting by Plaintiff is “a billing framework Plaintiff invented unilaterally.” (Reply at 6:3-6.) Instead, Defendant argues that the engagement for representation in immigration court was for the flat fee of \$12,000 and if he terminated Plaintiff’s services before completion of the representation, he was required to receive his full \$12,000 back – without any offset for the time spent by Plaintiff working on the matter.

Plaintiff’s interpretation of Retainer 2, however, is a reasonable one. “The contractual language must be construed in the context of the document as a whole and in the circumstances of the case.” (*Remedial Construction Services, LP v. AECOM, Inc.* (2021) 65 Cal.App.5th 658, 663.) The court gives “effect to all of a contract’s terms, and ... avoid[s] interpretations that render any portion superfluous,

void or inexplicable.” (*Ibid.*)

As noted above, Retainer 2 explicitly states that if representation is terminated the client is entitled to a refund of “any amount of the fee **that has not been earned...**” In other words, Plaintiff will be compensated for any time spent on the matter prior to termination of his services. Paragraph 3, which sets out the hourly rates for the attorneys and paralegals sets forth a framework for how this calculation will be performed. That section states that “time charged includes, but is not limited to, the time Attorney spends on telephone calls, e-mails relating to Client’s matter,” etc.

While that paragraph also outlines what ‘additional costs’ the client may be responsible for – which are not covered by the flat fee – there is no indication that the rates set forth only apply to those ‘additional costs.’ The ‘additional costs’ include things such as notary fees, interpreter fees, and ‘retaining experts or contract attorneys.’ These do not relate to hourly work by the attorneys/paralegals.

The phrase “that has not been earned” must mean something in Retainer 2. The most reasonable interpretation is that if the representation is terminated early, Plaintiff can calculate the time spent and multiply it by the applicable hourly rate to determine how much ‘has been earned’ to that point. He can then deduct that amount from the flat fee and is required to refund the rest. If, however, the time spent exceeds the flat fee, Plaintiff would not be able to bill the client for that additional time. In other words, the flat fee puts a cap on how much Plaintiff can earn for the assignment.

Plaintiff points to Retainer 2 along with his billing record for the matter (Kalnytskyi Decl. Ex. C) to show how he calculated the amount to be refunded to Plaintiff. He also points to the refund check (Kalnytskyi Decl. Ex. I) to show that a refund was made.

“The court’s single task is to determine whether the plaintiff has made a prima facie showing of facts supporting his or her cause of action.” (*Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 702.) The court does not “weight credibility” nor “evaluate the weight of the evidence.” (*Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699.) “Only a cause of action that lacks ‘even minimal merit’ constitutes a SLAPP.” (*Id.* at 700.)

Plaintiff has presented sufficient evidence to show that his claims related to the statements that Plaintiff withdrew money without permission and/or notifying Defendant are potentially meritorious. As such, Defendant’s motion is **denied** as to those statements.

2. Plaintiff “charges twice ... this is fraud.”

In the Avvo review, Defendant wrote: “He also charges twice for services that have already been provided – this is fraud.” (Ex. G.) Defendant does not directly address this statement in his motion or reply. Plaintiff’s opposition papers, while generally referring to this statement, do not provide any direct argument regarding how to analyze the statement.

Plaintiff’s declaration, however, does state that he “did not charge twice for the same service.” (¶ 10.) The chart provided in the Opposition, under the column for ‘Evidence Creating Probability of Prevailing’ cites to Exhibits A and B – which are the two retainer agreements; and Exhibit C which is the billing record for the Defendant’s matter.

The above analysis appears to apply to this statement as well. If there were duplicate billing entries in

the billing records – Defendant would have a defense of truth for this claim. Defendant does not identify any such entries. If there are entries that Defendant could argue were duplicative, this is a question of fact to be determined later. Here, the Court is only required to find that Plaintiff's cause of action has 'minimal merit.' Plaintiff has declaration that he did not charge twice for the same service and the billing records indicating as such are before the Court. While Defendant may be able to show at a later date that the descriptions hide the fact that some tasks were billed twice – that issue is not before the Court at this time.

Based on the above, Plaintiff has presented sufficient evidence to show that his claims related to the statement that Plaintiff billed twice for services and that such an action "is fraud" is potentially meritorious. As such, Defendant's motion is **denied** as to those statements.

3. "Nothing has been refunded" – i.e. no money has been returned.

The Complaint alleges that on February 13, 2025, Defendant posted a one-star review on Yelp that included the statement: "To date, of the \$11,000 paid, nothing has been refunded." Defendants submitted the Yelp review as Exhibit H to his declaration. This confirms that the above statement was posted by Defendant on that date. Defendant argues that this statement is one of fact and that it is verifiably false.

Plaintiff indicates in his declaration that a "refund check was prepared for the unearned portion [of his fees] calculated by my office." (Romanenko Decl. ¶ 9.) He also confirms that Exhibit I to Defendant's declaration is a copy of the refund check prepared by his office. (*Id.* ¶ 3; D's Decl. Ex. I.) Exhibit I is a copy of a check from the Law Office of Andrei Romanenko PC made out to Defendant in the amount of \$2,665. The memo indicates: "full refund of unearned att's fees." The check is dated April 25, 2024 – almost one year prior to the Yelp post.

In Reply, Defendant takes issue with the method Plaintiff used to calculate the refund. (Reply at M.) He then argues, in part, that the statement that "no refund was issued [is] therefore not [a] false statement[] of fact..." While Defendant may take issue with how Plaintiff calculated the amount to be refunded under the representation agreement, whether any amount was repaid *is* a statement of fact. Here, it is verifiably false. Plaintiff has presented evidence that he did indeed issue a refund check to Defendant for 'unearned attorney fees.' In fact, Defendant is the one that included that evidence as part of his declaration – showing that he received the refund check.

A defamatory statement is one "which tends to injure 'reputation' in the popular sense; to diminish the esteem, respect, goodwill or confidence in which the plaintiff is held...." (*O'Hara v. Storer Communications* (1991) 231 Cal.App.3d 1101, 1118 citation omitted.) Stating that an attorney did not provide any refund for amounts he was not entitled to clearly falls within this definition.

Plaintiff has met his burden to show this basis for his defamation claim has 'minimal merit.' As such, Defendant's motion is **denied** as to those statements.

4. The Contract was for \$10,000 and Plaintiff increased fee by \$2,000

The Google Maps review, mis-quoted in paragraph 23 of the Complaint, includes the following statement: "After a few months, Romanenko refused to continue handling the asylum case unless the fee was increased by \$2,000, citing the following justification: 'Our signed contract says nothing about

fixing the price for the future,’ and the contract stated \$10,000.”

Plaintiff cites the two retainer agreements, which show that he was first retained to prepare and file form I-589 for \$1,000. (Kalnytskyi Decl. Ex A.) Thereafter, Retainer 2 was executed where he was retained to represent Defendant in immigration court. The second Agreement indicates that cost is a flat fee of \$12,000, but that “\$1,000 will be credited for preparing I-589.” (*Id.* Ex. B.) Thus, the terms of Retainer 2 explicitly state that it was for \$12,000 – with a \$1,000 credit for the previous work. Thus, the statement is objectively and provably false.

On Reply, Defendant argues that the communications between the parties indicate that the original agreement was for \$10,000, but that draft “was never signed – not because Defendant refused, but because Plaintiff subsequently refused to proceed at \$10,000 and demanded \$12,000 instead.” (Reply at 5:1-23.) In other words, he is arguing that there was an initial agreement that the representation would be for \$10,000 but was later changed to \$12,000 – before any contract was signed between the parties.

There are a couple problems with Defendant’s argument. First, none of the communications Defendant refers to in his reply are provided. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “Even if they were, the statements contained in the memorandum lack foundation and could not have been used by the court to evaluate the consideration.” (*Brehm Cmty. v. Superior Court* (2001) 88 Cal.App.4th 730, 735.)

Second, the statement that the ‘contract stated \$10,000’ is demonstrably false. Retainer 2, which Defendant submits as Exhibit B, explicitly states it is for \$12,000. While there may have been initial discussions and negotiations regarding a lower amount (i.e. \$10,000), Defendant specifically concedes that “[t]hat draft was never signed.” (Reply at 5:5-6.)

The above demonstrates that Plaintiff has met his burden to show this basis for his defamation claim has ‘minimal merit.’ As such, Defendant’s motion is **denied** as to those statements.

5. Plaintiff did not request evidence/ did nothing to secure hearing

Plaintiff cites paragraph 22 of the Complaint, which relates to the one-star review on Avvo made by Defendant. In that review, Defendant wrote: “Romanenko did not request or work with evidence,” and “You did nothing to secure the scheduling of my individual hearing.” Defendant argues that these statements are true, and therefore not defamatory.

Plaintiff points to the billing records attached to Defendant’s declaration which shows the work spent on Defendant’s file. It includes entries for research, drafting motions, and reviewing IJ orders. It also specifically includes the following entries: “emailed client a notification of cancelled hearing” and “responded to the court clerk’s e-mail with attorney’s dates of unavailability for the upcoming individual hearings.” These entries appear to confirm that there was a hearing scheduled – which was subsequently cancelled. And that there were attempts to schedule a new hearing.

The above demonstrates that Plaintiff has met his burden to show this basis for his defamation claim has ‘minimal merit.’ As such, Defendant’s motion is **denied** as to those statements.

6. Paperwork was done by incompetent staff/many mistakes

Plaintiff cites paragraph 22 of the Complaint, which relates to the one-star review on Avvo made by Defendant. In that review, Defendant wrote: "... and for \$500 per hour made many mistakes in the documents," and "He claims that he personally prepares the paperwork, but in reality it is done by incompetent staff in his office."

Plaintiff again points to the billing records attached to Defendant's declaration which detail the work he billed for. This evidence, however, does not show any of the actual work. It does not indicate that no mistakes were made or that there were not any errors in any paperwork or applications that he filed. As the saying goes, "To err is human." It would be incredible to think that Plaintiff never made any mistakes in any documents prepared by his office. Even if he did do perfect work, he has not presented any evidence at this stage to so indicate.

The billing records also do not address the claims that Plaintiff's staff may have prepared any of the paperwork. Plaintiff's declaration appears to confirm that his staff did perform work drafting materials. As declared by Plaintiff: "During the representation, **my office performed legal work for Defendant** including ... preparation and filing activity, review of documents, preparation of immigration pleadings and filings" (§ 7.)

Regarding the competence of the staff, those statements relate to other people – not Plaintiff. In addition, a statement about the competence of a person is an opinion regarding their ability to perform a task. Merriam-Webster defines 'competence' to mean (among other things): "the quality or state of having sufficient knowledge, judgment, skill, or strength (as for a particular duty or in a particular respect)" (<https://www.merriam-webster.com/dictionary/competence>) This statement is too vague to constitute a provable fact. Which staff members were not competent in what tasks?

The key in determining whether a statement is protected opinion or a provable fact is "not parsing whether a published statement is fact or opinion, but 'whether a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact.'" (*ZL Technologies, Inc. v. Does 1-7* (2017) 13 Cal.App.5th 603, 624.) In making this determination, the Court uses a 'totality of the circumstances' test and puts itself in the place of an average reader to determine the natural and probable effect of the statement. (*Ibid.*)

When read in the context of the posting, an average reader would not interpret this statement as a defamatory smear about the specific abilities of Plaintiff's staff, but rather as an angry opinion of a client who felt like he did not get the results he was expecting.

The above demonstrates that Plaintiff has failed to meet his burden to show this basis for his defamation claim. As such, Defendant's motion is **granted** as to those statements.

7. Plaintiff lied and deceived people.

Plaintiff again cites paragraph 22 of the Complaint, which relates to the one-star review on Avvo made by Defendant. In that review, it is alleged that Defendant wrote: "... you are lying and deceiving people."

That small quote is taken out of context. The post at issue includes Plaintiff's response and then an edited post by Defendant where he appears to be responding to points made by Plaintiff. The full

discussion related to the above snippet is as follows:

“Romanenko: Since Kalnytskyi terminated our services, we had dozens of similar cases granted for our other clients who are happy with the services provided
Kalnytskyi: Then post on your Facebook page at least two dozen cases of Ukrainian clients with TPS status who have been granted asylum after March 22, 2024 – otherwise you are lying and deceiving people.”

The first part of the statement (starting with identifying Romanenko as the speaker) is a quote from Plaintiff’s responsive post. The second part of the statement (starting where it notes Kalnytskyi’s response starts) is Defendant’s response to his statement.

Defendant is not calling Plaintiff a liar or that he is deceiving people. What he is saying is that if what Plaintiff said is true – he should provide some evidence to support his claim. If there is no evidence to support such a statement, then that statement would be false. As such, Plaintiff would be “lying and deceiving people.” This snippet that Plaintiff relies upon is not a statement of fact. When read within the context of the entire statement it is a response to Plaintiff’s contention that he has “had dozens of similar cases granted for” other clients.

The above demonstrates that Plaintiff has failed to meet his burden to show this basis for his defamation claim. As such, Defendant’s motion is **granted** as to those statements.

As the Court in *Industrial Waste* explains, “*Vogel* demonstrates that mere assertions that a statement is ‘false,’ even in sworn declarations, do not satisfy a plaintiff’s burden to demonstrate falsity. As the court there put it, the ‘simple negation of the challenged statement fails to fairly meet its substance.’ [Citation omitted.]” (*Industrial Waste, supra*, 4 Cal.App.5th at 1159.) Plaintiff has not met its burden of demonstrating the probability of prevailing on its first and fifth cause of action with competent and admissible evidence showing the “minimal merit” of its libel claims.

Attorney Fees and Costs

Code of Civil Procedure § 425.16 states:

(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.

As outlined above, Defendant only prevailed on a minority of the statements Plaintiff alleges were defamatory. In one sense, this could be considered ‘prevailing’ on the special motion to strike since some of the allegations are being stricken. Overall, however, the Court finds that Defendant did not ‘prevail’ in that all the causes of action continue – even if only on some of the statements asserted in the Complaint. As such, Defendant is not entitled to fees or costs.

Even if Defendant could be deemed to have ‘partially prevailed’ there is no basis for awarding attorneys’ fees as Defendant is proceeding in pro per. As such, he has not incurred any attorney fees.

Accordingly, Defendant's request for attorneys' fees and costs is **denied**.

Summary and Conclusion

Defendant's motion to strike is **denied** as to the following statements:

- "He does not comply with the terms of the contract, and without notifying the client, he deducts money."
- "He does not follow the terms of his own contract, withdraws money without permission...."
- "He continued to withdraw money even after being terminated in order to avoid refunding the client."
- "He also charges twice for services that have already been provided – this is fraud."
- "To date, of the \$11,000 paid, nothing has been refunded."
- "After a few months, Romanenko refused to continue handling the asylum case unless the fee was increased by \$2,000, citing the following justification: 'Our signed contract says nothing about fixing the price for the future,' and the contract stated \$10,000."
- "Romanenko did not request or work with evidence," and
- "You did nothing to secure the scheduling of my individual hearing."

Defendant's motion is granted as to the following statements:

- "... and for \$500 per hour made many mistakes in the documents,"
- "He claims that he personally prepares the paperwork, but in reality it is done by incompetent staff in his office."
- "... you are lying and deceiving people."

Defendant's motion is also **granted** as to any other statements/quotations contained in the Complaint which were not specifically addressed by Plaintiff in his opposition, to the extent he claims they were defamatory. In other words, Plaintiff's case may proceed only based on the eight statements listed above wherein the court denied Defendant's Motion to Strike.

Defendant's request for attorney's fees and costs is **denied**.

9. 9:00 AM CASE NUMBER: C26-00255
CASE NAME: DANIEL HOGAN VS. GENERAL MOTORS, LLC
RE 1ST AMENDED COMPLAINT
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Defendant General Motors LLC ("Defendant") brings this demurrer to the First Amended Complaint ("FAC") of plaintiff Daniel Hogan ("Plaintiff"). Defendant challenges Plaintiff's third cause of action for

fraudulent concealment and fourth cause of action for violation of the Consumers Legal Remedies Act ("CLRA").

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to the third and fourth causes of action in Plaintiff's First Amended Complaint.

Meet and Confer

The meet and confer requirement has been satisfied. (Ryan Kay Decl., ¶ 2; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

In ruling upon demurrers, courts treat as being true "not only the complaint's material factual allegations, but also facts that may be implied or inferred from those expressly alleged." (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.) "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in FAC

Plaintiff filed this action on January 23, 2026, and filed the first amended complaint ("FAC") on February 24, 2026. (FAC, p. 1.) The FAC alleges claims against Defendant for: (1) breach of implied warranty of merchantability under the Song-Beverly Act; (2) breach of express warranty under the Song-Beverly Act; (3) fraudulent concealment; and (4) violation of Civil Code section 1750 et seq., Consumers Legal Remedies Act ("CLRA").

On August 15, 2022, Plaintiff purchased a new 2022 Chevrolet Silverado from Concord Chevrolet for personal, family, or household purposes. (FAC, ¶¶ 5, 7.) The vehicle came with a warranty. (*Id.* at ¶ 9.) Plaintiff took the vehicle to Defendant's authorized service and repair facilities on multiple

occasions to address nonconformities. (*Id.* at ¶ 11.) Each time, Defendant’s authorized service and repair facility represented that they conformed the vehicle to the warranties and that the defects, malfunctions and nonconformities had been repaired. (*Id.* at ¶ 13.) The engine sold with Plaintiff’s vehicle was defective and Defendant knew that kind of engine was defective since early 2018. (*Id.* at ¶ 18.) The defects are caused by issues with the fuel system, emissions system, cooling system or internal rotating components, which lead to a sudden loss of power, stalling, or other impairments while the vehicle is in operation. (*Id.* at ¶ 29.)

Between March 9, 2023, and February 5, 2026, Plaintiff took the vehicle in for repairs on eight separate occasions and despite Defendant’s attempts to fix it, the vehicle continues to experience the same dangerous and persistent issues caused by a defective engine. (FAC, ¶ 42.) At the time of the vehicle sale, Defendant knew that the vehicle was equipped with a defective engine yet failed to inform Plaintiff of this. (*Id.* at ¶ 43.) Had Plaintiff been advised of the defective engine he would not have purchased it or would have paid significantly less. (*Id.* at ¶ 44.)

Plaintiff seeks replacement or restitution, incidental damages, punitive damages, injunctive relief, attorney fees, costs of suit, the difference in value of the vehicle as accepted and the value the vehicle could have had if it had been as warranted, remedies provided in Chapters 6 and 7 of Division 2 of the Commercial Code, and prejudgment interest. (FAC, p. 43.)

Discussion

Statute of Limitations

Defendant argues that Plaintiff’s fraudulent concealment and CLRA claims are barred by the three-year statute of limitations. (Demurrer MPA, pp. 8-9, citing Code of Civ. Proc., § 338, subd. (d) and Civ. Code, § 1783.) He argues that Plaintiff purchased the vehicle on August 12, 2022, and did not file the lawsuit until January 2026, which is too late. (Demurrer MPA, p. 8.) Plaintiff argues that these claims are not barred by the statutes of limitation and that it is not proper to assert that he knew of the defective engine on the date of purchase because that goes against the specific allegation from the FAC that he would not have purchased the vehicle had he known of the defect. (Opposition, pp. 1-4; FAC, ¶¶ 32-33.) Defendant argues on reply that Plaintiff has failed to properly plead the discovery rule and that the Court should sustain the demurrer to the third and fourth causes of action without leave to amend. (Reply, pp. 2-3.)

The Court finds Defendant’s argument about the statute of limitations unavailing.

It is well established that “statutes of limitation do not begin to run until a cause of action accrues.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807, citing *Romano v. Rockwell International, Inc.* (1996) 14 Cal.4th 479, 487.) “Traditionally at common law, a cause of action accrues when [it] is complete with all of its elements—those elements being wrongdoing, harm, and causation. . . . This is the ‘last element’ accrual rule: ordinarily, the statute of limitations runs from the occurrence of the last element essential to the cause of action.” (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191.)

Here, Plaintiff did not need to take the vehicle into the shop until March 9, 2023, which was the vehicle’s first visit to the service center, and it is thus inferable that there were no problems with the

vehicle prior to that date. (FAC, ¶¶ 34, 42.) It is not reasonable to expect Plaintiff to have learned of the defective engine prior to the vehicle exhibiting its first problem that caused it to need to be taken into the shop and it is further so that no cause of action accrued prior to that date. March 9, 2023, is less than three years prior to this case being filed on January 23, 2026.

The Court will overrule Defendant's demurrer to the third and fourth causes of action based on the statute of limitations.

Fraudulent Concealment

Lack of Specificity

Defendant argues that Plaintiff has not pled the fraudulent concealment claim with sufficient specificity and identifies the five *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43-44, elements that must be satisfied to state a claim for fraudulent concealment with the proper specificity. (Demurrer MPA, pp. 9-10.) Defendant cites *Tenzer v. Superscope, Inc.* (1985) 39 Cal.3d 18, 30, to support an argument that Plaintiff was required to plead intent to defraud with specificity. (Demurrer MPA, p. 10.) Plaintiff argues that the fraudulent concealment claim is sufficiently pled and cites the supporting paragraphs. (Opposition, pp. 4-7.) Plaintiff further distinguishes *Tenzer* as not dealing with fraudulent concealment and argues how it actually supports his fraudulent concealment claim. (*Id.* at p. 7.) Defendant argues on reply that Plaintiff failed to plead the specific facts that Defendant allegedly failed to disclose and also points out that the aggregated data Plaintiff cites and describes as TSBs, NHTSA complaints and the like is not specifically pleaded because it includes information from other vehicles. (Reply, pp. 3-5.)

[FOOTNOTE: The Court notes that the parties refer to the vehicle at issue as an Escalade in the reply, despite the vehicle at issue being alleged in the FAC to be a 2022 Chevrolet Silverado. (Reply, pp. 5, 9; FAC, ¶ 5.)]

With respect to how to plead a fraudulent concealment claim with the requisite specificity, the California Supreme Court has provided the following guidance:

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. [Citations.] . . . If the duty allegedly arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission.

(*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43-44.)

Here, regarding element one, the content of the omitted facts, paragraph 36 describes that the

defective engine was preventing the smog sensors from resetting. (FAC, ¶ 36.) The Court finds Plaintiff's allegations as to element one sufficient for pleading purposes. Regarding element two, the defendant's awareness of the materiality of those facts, paragraph 79 alleges that "Defendant failed to provide notice of the Defective Engine in vehicle sales materials distributed by Defendant to customers, knowing full well that the defect was unrepairable and posed safety risks to Plaintiff." (FAC, ¶ 79.) The Court finds Plaintiff's allegations as to element two sufficient for pleading purposes. Regarding element three, the inaccessibility of the facts to the plaintiff, paragraph 68 alleges that "Defendant has superior knowledge of the Defective Engine because it has access to information (and can interpret information) that average, reasonable consumers, like Plaintiff, do not. None of this information is available to average, reasonable consumers like Plaintiff, nor did Defendant publicly or privately disclose any of this information to Plaintiff." (FAC, ¶ 68.) The Court finds Plaintiff's allegations as to element three sufficient for pleading purposes.

Regarding element four, the general point at which the omitted facts should or could have been revealed, paragraph 74 alleges that this should have happened prior to Plaintiff's purchase of the vehicle, or during his research, test drive, or sales process, or at the least at any point the vehicle was presented to Defendant for repair. (FAC, ¶ 74.) The Court finds Plaintiff's allegations as to element four sufficient for pleading purposes. Regarding element five, justifiable and actual reliance, either through action or forbearance, based on the defendant's omission, paragraphs 32 and 33 allege that:

At no time was Plaintiff told or made aware, either publicly or privately, that the Vehicle was equipped with the Defective Engine and had the problems associated therewith. These omissions were material to Plaintiff's decision to purchase the Vehicle. Had Defendants and/or their authorized agents publicly or privately disclosed the Defective Engine before Plaintiff purchased the Vehicle, Plaintiff would have been aware of such disclosures and would not have purchased the Vehicle.

(FAC, ¶¶ 32-33.)

The Court finds Plaintiff's allegations as to element five sufficient for pleading purposes. Plaintiff has properly pleaded his fraudulent concealment claim with the requisite specificity.

With respect to Defendant's argument that Plaintiff has not pled an intent to defraud, these allegations are found at paragraphs 21 and 117. (FAC, ¶¶ 21 ["Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being, in part to enrich themselves at the expense of consumers."]; 117 ["Defendants intentionally concealed material information regarding the Defective Engine to drive up sales and maintain their market power. Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being. Defendants' acts were perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent, were done to enrich themselves at the expense of consumers, gain commercial advantage over competitors, and to drive consumers away from consideration of competitor's vehicles."].)

Lack of a Transactional Relationship

Defendant argues that Plaintiff's fraudulent concealment claim fails because Plaintiff does not allege a transactional relationship between himself and Defendant that would give rise to a duty to disclose.

(Demurrer MPA, pp. 10-12.) This is because Plaintiff does not allege that he purchased the vehicle directly from Defendant. (*Id.* at p. 12.) He cites to *Antonov v. General Motors LLC* (C.D. Cal. Jan. 19, 2024) No. 8:23-cv-01593-FWS-MJR, 2024 WL 217825, and *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276 in support of this argument. (*Id.* at pp. 11-12.)

Plaintiff argues that a transactional relationship between him and Defendant is indeed alleged and that Defendant had a duty to disclose in this case. (Opposition, pp. 7-12.) This is because the court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, has already rejected the same argument that Defendant makes here. (Opposition, p. 8.) Plaintiff further argues that *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, provides further support for his position and that *Rattagan* did not address this issue. (Opposition, pp. 8-11.) Plaintiff finally contends that *Antonov v. General Motors LLC* (C.D. Cal. Jan. 19, 2024) No. 8:23-cv-01593-FWS-MJR, 2024 WL 217825, is an unpublished non-binding federal case that does not reflect the law in California. (Opposition, pp. 11-12.)

On reply, Defendant reasserts that the *Bigler-Engler* case requires a preexisting relationship between the parties and that *Dhital* is inconsistent with *Rattagan*, which requires more. (Reply, pp. 5-6.) Defendant also argues that conclusory allegations of the dealer being an agent are insufficient. (*Id.* at p. 6.)

Here, the Court finds *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, expressly on point as to the position of the parties and the procedural posture of the case. *Rattagan* was a very limited decision that was in response to a question posed by the United States Court of Appeal for the Ninth Circuit, and answered the question of whether, “[u]nder California law, may a plaintiff assert a tort claim for fraudulent concealment arising from or related to the performance of a contract? The answer to the question is a qualified yes.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 13.) *Rattagan* further does not address in any way the issue asserted here by Defendant regarding the lack of a transactional relationship. *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 284, was decided after a jury trial.

In *Dhital*, the Court of Appeal provided the following guidance on the issue before this Court:

In its short argument on this point in its appellate brief, Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.

(*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844.)

Here, this case is similarly in the pleading stage, and Plaintiff has alleged that he bought the car from a Chevrolet dealership, that Chevrolet provided the warranty for the vehicle, and that Chevrolet’s

authorized dealerships are Defendant's sales agents and that Concord Chevrolet is officially certified to sell Chevrolet vehicles. (FAC, ¶¶ 5, 6, 8, 9, 85.) The FAC alleges that Plaintiff and Defendant are in a warrantor/warranty relationship that Plaintiff purchased along with the vehicle. (*Id.* at ¶¶ 8-9.) *Dhital v. Nissan North America, Inc.* is binding authority on this Court and it is essentially the exact same fact pattern as alleged here by Plaintiff. The California Supreme Court denied a request for depublication as to *Dhital* and despite granting a petition for review on the topic of whether claims for fraudulent concealment are exempted from the economic loss rule, the petition for review was dismissed with no modifications to the *Dhital* opinion. (*Dhital v. Nissan North America, Inc.* (2023) 304 Cal.Rptr.3d 82, 83 ["The request for an order directing depublication of the opinion is denied."]; *Dhital v. Nissan North America, Inc.* (2024) 327 Cal.Rptr.3d 898.)

The Court will overrule Defendant's demurrer to Plaintiff's third cause of action for fraudulent concealment.

CLRA

Defendant argues that Plaintiff failed to provide the adequate notice required to properly plead a CLRA violation and that this claim fails because Plaintiff failed to plead fraud with the required specificity. (Demurrer MPA, pp. 12-16.) Defendant argues that Plaintiff failed to provide thirty or more days' notice as required by Civil Code section 1782, because Plaintiff alleges in the FAC that the notice was sent on the same day as the filing of the Complaint in this matter. (*Id.* at p. 13.) Defendant cites the general rule that statutory causes of action should be pled with particularity. (*Id.* at p. 15.)

Plaintiff argues that this practice has been specifically approved in *Morgan v AT&T Wireless Services Inc.* (2009) 177 Cal.App.4th 1235, which rejected any argument that the CLRA notice must be sent before commencement of a lawsuit, explaining such an argument "is contrary to the express language of the notice statute." (*Id.* at p. 1260; Opposition pp. 12-13.) The court affirmed that notice is not required if a plaintiff is not seeking damages under the CLRA; the "statute contemplates" that a consumer may amend a complaint to add a request for damages, which is expressly allowed. (*Id.*) Plaintiff asserts this is what he did here. (Opposition p. 13.) Plaintiff served the notice on January 23, 2026, by certified mail, the same day the lawsuit was filed, and then he filed the FAC which added a request for damages on February 24, 2026, a month after the CLRA notice was set to Defendant. (Opposition, p. 13, FAC, ¶ 146.)

Plaintiff also cites Civil Code section 1760 as providing that the CLRA asserts that its provisions "shall be liberally construed and applied to promote its underlying purposes, which are to protect consumers against unfair and deceptive business practices and to provide efficient and economical procedures to secure such protection." (Opposition, p. 13.) Plaintiff points out that Defendant mistakenly argues that a heightened pleading standard applies to CLRA claims, similar to that of common law fraud claims, but this is not so. (*Ibid.*)

On reply, Defendant argues that Plaintiff only pleaded conclusions of law without supporting facts and did not identify any representation made by Defendant about the vehicle prior to the purchase date. (Reply, p. 8.) The representations cited by Plaintiff are classic sales talk and general puffery that is considered opinion. (*Id.* at pp. 8-9.)

Here, the Court finds that Plaintiff properly provided notice based on the fact that it only sought injunctive relief for its CLRA claim in the original complaint filed on January 23, 2026. (Complaint, ¶¶ 142-152.) Upon the filing of the FAC on February 24, 2026, after 30 days, Plaintiff updated the CLRA claim to include a request for damages. (FAC, ¶¶ 143-153.) This practice was approved in *Morgan v. AT&T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235, 1260-1261.)

Regarding Defendant's argument that the fraud claim supporting the CLRA claim is insufficiently pled because it lacks specificity, the Court disagrees. "These deceptive practices proscribed in the CLRA include the concealment or suppression of material facts. [Citations.] This is because fraud or deceit encompasses the suppression of a fact by one who is bound to disclose it, or the suppression of a fact that is contrary to a representation that was made." (*Collins v. eMachines, Inc.* (2011) 202 Cal.App.4th 249, 255.) Here, because Plaintiff has properly stated a claim for fraudulent concealment, which contains a heightened pleading requirement, the Court finds that the same allegations support his CLRA claim.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant's demurrer to the third and fourth causes of action in Plaintiff's First Amended Complaint. Defendant must file its Answer or other responsive pleading within 15 days of service of notice of entry of this order.

10. 9:00 AM CASE NUMBER: C26-00255
CASE NAME: DANIEL HOGAN VS. GENERAL MOTORS, LLC
STRIKE PUNITIVE DAMAGES RE 1ST AMENDED COMPLAINT
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Defendant General Motors LLC ("Defendant") brings this motion to strike punitive damages ("Motion") from the First Amended Complaint ("FAC") of plaintiff Daniel Hogan ("Plaintiff").

For the reasons discussed below, the Court **DENIES** Defendant's Motion.

Meet and Confer

The meet and confer requirement has been satisfied. (Ryan Kay Decl., ¶ 2; Code Civ. Proc., § 435.5, subd. (a)(3)(A).)

Legal Standard

"The court **may**, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subds. (a), (b), emphasis added.)

Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be

based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437, subds. (a) and (b).) “A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint’s allegations, which are assumed to be true.” (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court’s discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Background: Facts Alleged in FAC

Plaintiff filed this action on January 23, 2026, and filed the first amended complaint (“FAC”) on February 24, 2026. (FAC, p. 1.) The FAC alleges claims against Defendant for: (1) breach of implied warranty of merchantability under the Song-Beverly Act; (2) breach of express warranty under the Song-Beverly Act; (3) fraudulent concealment; and (4) violation of Civil Code section 1750 et seq., Consumers Legal Remedies Act (“CLRA”).

On August 15, 2022, Plaintiff purchased a new 2022 Chevrolet Silverado from Concord Chevrolet for personal, family, or household purposes. (FAC, ¶¶ 5, 7.) The vehicle came with a warranty. (*Id.* at ¶ 9.) Plaintiff took the vehicle to Defendant’s authorized service and repair facilities on multiple occasions to address nonconformities. (*Id.* at ¶ 11.) Each time, Defendant’s authorized service and repair facility represented that they conformed the vehicle to the warranties and that the defects, malfunctions and nonconformities had been repaired. (*Id.* at ¶ 13.) The engine sold with Plaintiff’s vehicle was defective and Defendant knew that kind of engine was defective since early 2018. (*Id.* at ¶ 18.) The defects are caused by issues with the fuel system, emissions system, cooling system or internal rotating components, which lead to a sudden loss of power, stalling, or other impairments while the vehicle is in operation. (*Id.* at ¶ 29.)

Between March 9, 2023, and February 5, 2026, Plaintiff took the vehicle in for repairs on eight separate occasions and despite Defendant’s attempts to fix it, the vehicle continues to experience the same dangerous and persistent issues caused by a defective engine. (FAC, ¶ 42.) At the time of the vehicle sale, Defendant knew that the vehicle was equipped with a defective engine yet failed to inform Plaintiff of this. (*Id.* at ¶ 43.) Had Plaintiff been advised of the defective engine he would not have purchased it or would have paid significantly less. (*Id.* at ¶ 44.)

Plaintiff seeks replacement or restitution, incidental damages, **punitive damages**, injunctive relief, attorney fees, costs of suit, the difference in value of the vehicle as accepted and the value the vehicle could have had if it had been as warranted, remedies provided in Chapters 6 and 7 of Division 2 of the Commercial Code, and prejudgment interest. (FAC, p. 43.)

Discussion

Moving Papers

Defendant first points out that Plaintiff’s Song-Beverly Consumer Warranty Act does not support a claim for punitive damages. (Motion, p. 4.) Defendant then proceeds to argue that the FAC fails to state facts sufficient to support the recovery of punitive damages. (*Id.* at pp. 4-6.) Defendant cites Civil Code section 3294 for the definitions of malice, oppression, and fraud. (*Id.* at p. 5 [“ ‘Fraud’

means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.”].)

Defendant cites to *Grievens v. Superior Court* (1984) 157 Cal.App.3d 159, 168 for the proposition that “When facts supporting oppression, fraud, or malice have not been properly alleged in a complaint, the trial court should grant the motion to strike.” (Motion p. 5.) Defendant contends that the FAC does contain any factual allegations to show fraud on the part of Defendant. (*Id.* at pp. 5-6.)

Defendant finally argues that Plaintiff’s purported claims for fraudulent concealment and violation of the Consumers Legal Remedy Act (“CLRA”) fail to state sufficient facts to constitute causes of action, so they cannot support punitive damages in this case. (*Id.* at p. 6.)

Opposition

Plaintiff argues that motions to strike are disfavored and should be used sparingly. (Opposition, p. 2.) Plaintiff cites *PH IL Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683, for its quote that “such use of the motion to strike should be cautious and sparing. We have no intention of creating a procedural ‘line item veto’ for the civil defendant.” (Opposition, p. 2.)

Plaintiff further argues that his punitive damages are being sought pursuant to his fraudulent concealment and CLRA claims, which give rise to claims for punitive damages. (Opposition, p. 3.) Plaintiff contends that punitive damages need not be pled with specificity and that he did in fact plead facts supporting his prayer for punitive damages. (*Id.* at pp. 4-7.) Plaintiff further contends that the FAC sufficiently alleges fraudulent concealment and CLRA claims and that if the court overrules Defendant’s demurrer, then it should likewise deny Defendant’s motion to strike. (*Id.* at p. 7.)

Reply

On reply, Defendant argues that Plaintiff cannot plead sufficient facts for each essential element of the fraud claims and thus may not recover punitive damages. (Reply, pp. 1-4.) Defendant points out that the punitive damages must be proven by clear and convincing evidence and contends that conduct must be despicable before punitive damages can be awarded. (*Id.* at pp. 4-5.) Defendant argues that even ultimate facts must be facts and here Plaintiff has not pled facts to show that punitive damages are allowable. (*Id.* at pp. 5-7.)

[FOOTNOTE: The Court notes that the parties refer to the vehicle at issue as an Escalade in the reply, despite the vehicle at issue being alleged in the FAC to be a 2022 Chevrolet Silverado. (Reply, pp. 3, 5, 6; FAC, ¶ 5.)]

Analysis

“A fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient.” (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610; Weil & Brown, Civil Procedure Before Trial, [The Rutter Group 2026] ¶6:165 [“A properly pleaded *fraud* claim will itself support recovery of punitive damages. No allegations of ‘malice’ or intent to injure plaintiff are required because fraud is an *alternative basis for recovery*.”] emphasis in original.)

Here, in the analysis of the demurrer filed at the same time as the instant Motion, the Court analyzed whether Plaintiff properly pleaded his fraudulent concealment claim and found it properly pled.

With respect to how to plead a fraudulent concealment claim with the requisite specificity, the California Supreme Court has provided the following guidance:

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. [Citations.] . . . If the duty allegedly arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission.

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43-44.)

Here, regarding element one, the content of the omitted facts, paragraph 36 describes that the defective engine was preventing the smog sensors from resetting. (FAC, ¶ 36.) The Court finds Plaintiff's allegations as to element one sufficient for pleading purposes. Regarding element two, the defendant's awareness of the materiality of those facts, paragraph 79 alleges that "Defendant failed to provide notice of the Defective Engine in vehicle sales materials distributed by Defendant to customers, knowing full well that the defect was unrepairable and posed safety risks to Plaintiff." (FAC, ¶ 79.) The Court finds Plaintiff's allegations as to element two sufficient for pleading purposes. Regarding element three, the inaccessibility of the facts to the plaintiff, paragraph 68 alleges that "Defendant has superior knowledge of the Defective Engine because it has access to information (and can interpret information) that average, reasonable consumers, like Plaintiff, do not. None of this information is available to average, reasonable consumers like Plaintiff, nor did Defendant publicly or privately disclose any of this information to Plaintiff." (FAC, ¶ 68.) The Court finds Plaintiff's allegations as to element three sufficient for pleading purposes.

Regarding element four, the general point at which the omitted facts should or could have been revealed, paragraph 74 alleges that this should have happened prior to Plaintiff's purchase of the vehicle, or during his research, test drive, or sales process, or at the least at any point the vehicle was presented to Defendant for repair. (FAC, ¶ 74.) The Court finds Plaintiff's allegations as to element four sufficient for pleading purposes. Regarding element five, justifiable and actual reliance, either through action or forbearance, based on the defendant's omission, paragraphs 32 and 33 allege that:

At no time was Plaintiff told or made aware, either publicly or privately, that the Vehicle was equipped with the Defective Engine and had the problems associated therewith. These omissions were material to Plaintiff's decision to purchase the Vehicle. Had Defendants and/or their authorized agents publicly or privately disclosed the Defective Engine before Plaintiff purchased the Vehicle, Plaintiff would have been aware of such disclosures and would not have purchased the Vehicle.

(FAC, ¶¶ 32-33.)

The Court finds Plaintiff's allegations as to element five sufficient for pleading purposes. Additionally, the Court finds that the intent to defraud is properly alleged at paragraphs 21 and 117 of the FAC. (FAC, ¶¶ 21 ["Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being, in part to enrich themselves at the expense of consumers."]; 117 ["Defendants intentionally concealed material information regarding the Defective Engine to drive up sales and maintain their market power. Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being. Defendants' acts were perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent, were done to enrich themselves at the expense of consumers, gain commercial advantage over competitors, and to drive consumers away from consideration of competitor's vehicles."].)

Plaintiff has properly pled his fraudulent concealment claim with the requisite specificity and thus the punitive damages prayer will be allowed to remain.

Ruling

A properly pled fraud claim supports the punitive damages allegation. Accordingly, the Court **DENIES** Defendant's motion to strike punitive damages allegations from the FAC.

11. 9:00 AM CASE NUMBER: C26-00479

CASE NAME: EVAN OWENS VS. ELIZABETH LAYN

1ST AMENDED COMPLAINT

FILED BY: LAYN, ELIZABETH G.

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer is continued to **9:00 a.m. on September 4, 2026.**

12. 9:00 AM CASE NUMBER: C26-00637

CASE NAME: WILLIAM DESENA VS. WALNUT CREEK COMMUNITY HEALTHCARE, LLC

RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY JUSTIN VITUG, ESQ.

FILED BY: DESENA, WILLIAM

TENTATIVE RULING:

The unopposed motion of **Justin Vitug and Javaheri & Yahoudai** to be relieved as counsel for **Plaintiff William Desena** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and

supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff William Desena's** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the appropriate next dates scheduled in the case. The withdrawal is effective upon **Justin Vitug** filing proof of service of signed order on **Plaintiff William Desena** and all parties.

The next date in this case is September 28, 2026 at 8:30 a.m. in Dept. 32 for Case Management Conference. All parties are ordered to file an updated Case Management Conference Statement at least 10 days prior to the Case Management Conference.

13. 9:00 AM CASE NUMBER: C26-00876
CASE NAME: PNC BANK, NATIONAL ASSOCIATION, SUCCESSOR TO PNC EQUIPMENT FINANCE, LLC, VS. COSTAS LAGUSIS

APPLICATION FOR WRIT OF POSSESSION AND HEARING AFTER HEARING

FILED BY: PNC BANK, NATIONAL ASSOCIATION, SUCCESSOR TO PNC EQUIPMENT FINANCE, LLC,

TENTATIVE RULING:

The unopposed application for a writ of possession for a 2023 Bobcat E32 Excavator Mini-Compact, Serial #B57811722 is approved. The court will execute the Order for Writ of Possession lodged with the Court on April 7, 2026.

14. 9:00 AM CASE NUMBER: C26-01203

CASE NAME: DANA FINEGOLD VS. JAMES FINEGOLD

SHOW CAUSE WHY A PRELIMINARY INJUNCTION SHOULD NOT BE ISSUED - SET BY DEPT PER EX PARTE ORDER FILED 4/29/26

FILED BY:

TENTATIVE RULING:

Before the Court is an order to show cause why a preliminary injunction should not issue foreclosing Defendant from engaging in, or attempting to engage in, fraudulent, unlawful, harmful and/or injurious conduct to Plaintiff, with respect to the operation of Plaintiff's and Defendant's company, AAAA RV & Boat Storage, LLC ("AAAA RV & Boat Storage" or the "Company").

For the following reasons, the motion is **denied** and the TRO issued on April 29, 2026 is **vacated**.

Factual and Procedural Background

On April 4, 2026 Plaintiff Dana Finegold, as an individual and derivatively on behalf of AAAA RV & Boat Storage, LLC filed a complaint against Defendant James Finegold and Nominal Defendants AAAA RV & Boat Storage LLC and JDF Holdings. The complaint for damages alleges causes of action for (1) breach

of fiduciary duty; (2) breach of fiduciary duty (derivative); (3) fraud – false promise; (4) fraud – intentional misrepresentation; (5) accounting and access to books and records; (6) breach of contract; (7) breach of the implied covenant of good faith and fair dealing; (8) conversion; (9) concealment; (10) partition of property; and (11) civil aiding and abetting.

Plaintiff Dana Finegold and James Finegold were previously married. Through a stipulated judgment for marital dissolution, Plaintiff and Defendant are co-owners and co-managers of AAAA RV & Boat Storage, LLC (“AAAA RV & Boat Storage” or the “Company”), a California limited liability company and of JDF Holdings, LLC, (“JDF Holdings”) a California Limited Liability Company that owns the property on which AAAA RV & Boat Storage operates (collectively, AAAA RV & Boat Storage and JDF Holdings are referenced as the “Companies”). (Complaint at ¶ 3.) The Complaint further alleges that Defendant Finegold “has misused AAAA RV & Boat Storage’s corporate funds and property for his own personal purposes, including but not limited to using Company bank accounts, cash receipts, equipment, and other assets for non-Company, personal, and competing business uses without legal or proper authorization.” (*Id.* at 9.)

On April 14, 2026 Plaintiff moved *ex parte* for a temporary restraining order. The Court granted the *ex parte* application on April 29, 2026 as follows:

1. Prohibitory Restraints. Defendant James Finegold is hereby ordered to cease:

- (a) Diverting, transferring, withdrawing, concealing, encumbering, or otherwise dissipating any cash, rents, income, receivables, deposits, or other assets of AAAA RV and Boat Storage, LLC (“Company Assets”), except in the ordinary course of business;
- (b) Opening, maintaining, or utilizing any undisclosed or unauthorized bank, credit, merchant, or financial accounts for the deposit, holding, transfer, or expenditure of Company Assets;
- (c) Depositing Company revenues into any account other than duly disclosed Company accounts LLP identified to Plaintiff Dana Finegold and to which Plaintiff has been given ownership and access;
- (d) Interfering with, restricting, or denying Plaintiff’s complete access to Company books, records, accountings, bank accounts, financial systems, facilities, and management information;
- (e) Taking any action outside the ordinary course of the Company’s business without the written consent of Plaintiff Dana Finegold or further the Court.

2. Affirmative Directives. Within 15 court days of the Order, Defendant shall:

- (a) Provide Plaintiff and her counsel with a complete accounting of all Company receipts and disbursements from Feb 1, 2026 to the present;
- (b) Identify in writing all bank, credit, merchant, and financial accounts into which any Company Assets have been deposited or transferred since Jan 31, 2026;
- (c) On or before 5/8/2026 transfer or cause to be transferred to duly disclosed Company operating accounts all Company Assets currently held in any undisclosed or non-Company accounts including Acct # ending #7091 w/ US Bank;
- (d) Restore Plaintiff’s full access credentials to Company records, accounting systems, banking portals, and facilities; and
- (e) Pay to Plaintiff the amount of \$50,000 representing the two months of income March 2026

and April 2026 she would have received from AAAA RV & Boat Storage operations but for Defendant's conduct; Plaintiff may withdraw from AAAA RV account ending in #9176 immediately.

3. Preservation of Status Quo. All Company Assets shall be preserved and used solely for legitimate Company purposes in the ordinary course of business.

4. Bond. Bond is hereby waived.

The Court also set an order to show cause for August 21, 2026 at 9:00 a.m.

On July 20, 2026, Plaintiff filed supplemental briefing in support of the motion for preliminary injunction. Therein, Plaintiff contended that Defendant had refused to comply with the portion of the TRO requiring a complete accounting of all Company receipts and disbursements from February 1, 2026 to the present. Plaintiff also contended that Defendant "continues to use at least two accounts associated with his siphoning account that received or continue to receive AAAA receipts or deposits and to which Plaintiff has no access." (Supp. Memorandum at 3:3-5.) Plaintiff also requested (among other things) supplemental relief in the form of an order that Defendant produce a customer-by-customer accounting from February 1, 2026 to the present, stating for each payment the customer name, invoice or storage space identifier, amount, date received, and payment method, together with monthly bank and processor statements and backup reflecting all deposits, chargebacks, and transfers for all accounts receiving or transmitting Company funds, including the MerchPayout SV9T account ending "3694a storage," account ending 4599, account ending 8194, and any other associated accounts. In opposition, Defendant disputes non-compliance with the Court's TRO.

Legal Standard on Preliminary Injunction

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) "An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction. [Citation.]" (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) The purpose of the preliminary injunction, theoretically, is to preserve the status quo and prevent irreparable harm pending trial on the merits. (*White v. Davis* (2003) 30 Cal.4th 528, 554.)

"Two interrelated factors are evaluated by the trial court in deciding whether to issue a preliminary injunction. The first is the 'reasonable probability that the Plaintiff will prevail on the merits at trial.'" (*Teachers Ins. & Annuity Assn.*, supra, 70 Cal.App.4th at p.1493). "The second is the interim harm that the Plaintiff is likely to sustain if the injunction were denied as compared to the harm that the Defendant is likely to suffer if the preliminary injunction were issued." (*Id.*).

While two factors are evaluated, "regardless of the balance of interim harm, the preliminary injunction cannot be allowed to stand unless there is 'some possibility' [Plaintiffs] will prevail on the merits of [their] action." (*Costa Mesa City Employees' Assn. v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 309.) Additionally, the burden is on the party seeking the injunction to show all elements necessary to support its issuance. (*O'Connel v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.)

The Court is not inclined to grant the requested injunction. In several respects, Plaintiff's requested orders would not "preserve" the status quo, but effectively grant judgment in her favor. This runs contrary to the underlying policy of preliminary injunctions, which preserve the status quo. The Court first notes the nature of the injunction requested. "[T]he general rule is that an injunction is

prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties.” (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) In her supplemental memorandum, Plaintiff requests supplemental relief which includes ordering Defendant to produce a customer-by-customer accounting from February 1, 2026 to the present as well as creates several new documentary obligations beyond those required by the stipulated judgment. These requests would “compel[] performance of an affirmative act that changes the position of the parties.” (*Id.*) As a consequence, this is a mandatory injunction, as opposed to prohibitory, and it is subject to stricter standards. (See *Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 [such an injunction is subject to stricter review on appeal].) Moreover, courts are generally more “reluctant” to issue a mandatory injunction, even if they may be granted in proper cases. (*Allen v. Stowell* (1905) 145 Cal. 666, 669.)

Analysis

The underlying policy of preliminary injunctions is to preserve the status quo. In this case, the status quo is dictated by the stipulated judgment regarding the parties’ jointly owned business interests.

1. Likelihood of Prevailing on the Merits

In looking at the likelihood of prevailing on the merits, the moving party bears the burden of establishing a reasonable probability of success on the merits. (*Association for Los Angeles Dept Sheriffs v. County of Los Angeles* (2008) 166 Cal.App.4th 1625, 1634.) Injunction will not issue if it appears the plaintiff will not prevail. (*SB Liberty, LLC v. Isla Verde Ass’n, Inc.* (2013) 217 Cal.App.4th 272, 280.)

Plaintiff argues that she has a high likelihood of success on the merits of the pled claims arising out of Defendant’s alleged breach of the Stipulated Judgment and his duties as co-manager and co-owner. In support of her *ex parte* application, she testified that notwithstanding her 50% ownership in AAAA RV & Boat Storage, LLC she does not have visibility into customer payments, delinquencies, or collections. (Dana Finegold Decl. iso TRO at ¶ 14.) She further testified that she has been shut out of the Company’s management and operations as well as denied access to the Company’s books, records, and accounting information. (*Id.* at ¶ 19.)

Outside of this testimony, Plaintiff does not adduce any evidence in support of the causes of action in her complaint. In opposition, Defendant has rebutted all of the factual allegations of Plaintiff Dana Finegold’s declaration with his own declaration testimony. Defendant disputes that he owns or operates a business that competes with AAAA. (James Finegold Decl. at ¶ 4.) He also testifies that he has not diverted or otherwise dissipated any of the Company Assets except in the ordinary course of business (*id.* at ¶ 2) and that he provided Plaintiff and her counsel with a complete accounting as required by the TRO order. (*Id.* at ¶ 3.)

Plaintiff has not demonstrated a likelihood of prevailing on the merits.

1. Balancing of the Relative Harms

In deciding whether to issue the injunction, the Court must also evaluate “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (*Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749.) “The ultimate goal of any test to be used in deciding whether a preliminary injunction should issue is to minimize the harm which an erroneous interim decision may cause. [Citation.]” (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Although the

court has broad discretion, it has “no discretion to act capriciously.” “It must exercise its discretion ‘in favor of the party most likely to be injured.’” (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.)

“To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits.” (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Irreparable harm is often related to the ‘inadequate legal remedy’ (*i.e.*, the damages remedy is inadequate because some immeasurable harm is threatened).

In this context, Plaintiff argues that the damages remedy is inadequate because of the threat of dissipation of assets, relying on *Wind v. Herbert* (1960) 186 Cal.App.2d 276.

In *Wind*, the Court of Appeal affirmed a trial court’s preliminary injunction in a partnership’s dissolution action which was designed to maintain the status quo pending adjudication on the merits. (*Wind, supra*, at pp. 279-283.) The injunction enjoined a partner in a card club from breaching a partnership agreement by depositing money from the club into a bank account that was not accessible to the other parties. (*Id.*) The injunction was within the court’s discretion because the partner would continue to dissipate the assets of the partnership. (See *id.* at p. 285.) The Court of Appeal noted that the trial court also could have found that the disbursements might be able to be adequately traced, and that an accounting that could eventually be ordered “might not fully disclose the damages suffered.” (*Id.*) “Further, use by defendants of partnership assets for their own gain and to the detriment of plaintiffs is a species of damage, ‘that ought not to be submitted to on the one hand or inflicted on the other.’ Such acts would constitute a flagrant breach of trust. Under the circumstances, the trial court properly issued a preliminary injunction to assure that the partnership assets will remain intact pending an accounting and a final hearing on the merits.” (*Id.* at pp. 285-286.)

Here, however, there is no evidence that Defendant is diverting liquid assets to a bank account that is not accessible by Plaintiff. As noted above, Defendant has rebutted all of the factual allegations of Plaintiff Dana Finegold’s declaration with his own declaration testimony. Plaintiff has not adduced evidence of “an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award.” (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410 (internal citation omitted).)

Finally, the Court notes that a preliminary mandatory injunction is rarely granted; it is permitted only in extreme cases where the right to such relief is clearly established. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 625.) Plaintiff has not met her burden to establish her right to relief. The Motion is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

15. 9:00 AM CASE NUMBER: MSC21-00650
CASE NAME: MARIA SALVADOR VS. GULF HARBOUR INVESTMENTS CORPORATION
ATTORNEY'S FEES
FILED BY:
TENTATIVE RULING:

The matter is stayed pursuant to the notice of bankruptcy filed 3/18/25.

Hearing on Defendant's post-judgment motion for attorneys' fees (originally filed January 24, 2025) is continued to **February 26, 2027** at 9:00 a.m. in Department 32.

Please note that this case will be assigned to another department effective January 4, 2027. Please check the court's website to ascertain the department that will be presiding over this case for all purposes.

16. 9:00 AM CASE NUMBER: MSC21-01379

CASE NAME: MOFFETT VS. SONIC WALNUT CREEK

POST-JUDGMENT ATTORNEYS FEES AND COSTS

FILED BY: MOFFETT, JAMES

TENTATIVE RULING:

The unopposed motion for an Order Granting Judgment Creditor's Motion for Post-Judgment Attorneys' Fees and Costs is granted, in the amount of \$8443.77. The Court will execute the proposed order lodged with the Court on April 10, 2026.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-01045

CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,

COMPEL CROSS-DEFENDANT MICHAEL JENKINS' FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

FILED BY: D & A CARRIER, INC,

TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."

Once a court grants a motion to compel arbitration, the case enters what has been called "the twilight zone of abatement," in which the court maintains "merely a vestigial jurisdiction over matters submitted to arbitration." (Brock v. Kaiser Foundation Hospitals (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally "consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not...." (Id.) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly, the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

18. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
*HEARING ON MOTION FOR DISCOVERY COMPEL VEHICLE INSPECTION
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Matter is vacated at the request of the moving party.

Courtroom Clerk's Session

19. 1:30 PM CASE NUMBER: C23-00472
CASE NAME: CARA PINE VS. CHATTERJEE MINA
ISSUE CONFERENCE
FILED BY:
TENTATIVE RULING:

Parties to appear.

Law & Motion
Add On

20. 9:00 AM CASE NUMBER: C25-01431
CASE NAME: PATRICK SHANAHAN VS. ZOE HOLDING COMPANY, INC.
APPLICATION FOR EXTENSION OF PRELIMINARY INJUNCTION / CONT'D FROM 8/14/26 PER TR
FILED BY: SHANAHAN, PATRICK
TENTATIVE RULING:

Before the Court is plaintiff's application to extend the preliminary injunction previously granted. In November of 2025, plaintiff posted a \$1,000 bond (see Code Civ. Proc., § 529) in order to implement an injunction staying an unlawful detainer action (Case No. MS25-0521) against him for six months. The Order granting the injunction permitted plaintiff to "move to renew the injunction" with any additional evidence acquired. Prior to the expiration, plaintiff brought this application to extend the injunction, pending resolution of this case. The application is **denied**, as discussed below.

I. Allegations and Factual Background

Around 2002, plaintiff began working for MGA Healthcare in Arizona. (The documents make reference to MGA Healthcare, MGA Homecare, and MGA Employee Services, but any distinction or lack thereof is not explained, nor are there any alter-ego allegations. For the purposes of this ruling, the Court will refer simply to MGA). Defendant David Zowine was one of the owners of MGA, either directly or indirectly through his ownership of Zoe Holding Co. (Complaint, ¶¶10-11.) Plaintiff alleges

that, at Zowine's request, he moved from Arizona to San Francisco to open the San Francisco office of MGA around 2006 or 2007. (Complaint, ¶12.) Plaintiff alleges Zowine recognized plaintiff as generating substantial profits for Zoe Holding Co., and that plaintiff was a critical employee. (Complaint, ¶13.) Plaintiff claims that in 2011 he, as a "loyal employee" assisted Zowine in "separating" his ownership of Zoe Holding Co. from the other then-owner, Marc Wichansky. (Complaint, ¶14.)

When plaintiff and his family began to consider moving out of San Francisco several years later, Zowine offered to have Zoe Holding Co. buy a house for plaintiff so that he would continue living in the Bay Area and working at the San Francisco office. (Complaint, ¶15.) Plaintiff alleges that Zowine said plaintiff would have the right to buy the house for the amount paid by Zoe Holding Co. when plaintiff had the financial ability to do so (the "House Option Agreement").

Plaintiff contends that he and his wife, in reliance on the House Option Agreement, chose the house in Alamo which is now at the center of this dispute. Plaintiff acknowledges that it was not Zoe Holding Co. that actually took title, however, nor was it MGA. Instead, defendant Zowine purchased the house in the name of his trust. (Complaint, ¶¶15-18.)

Plaintiff attaches a February 2016 cover letter from his real estate agent to the seller's, representing the offer to purchase as being on behalf of plaintiffs, but noting the title would be held by Zowine "for financial/tax reasons." (Complaint, ¶19, Exhibit A.)

Plaintiff's family moved into the house in June 2016. In seeking to enroll their child in school, they needed proof of living at the house and were given a "Residential Use Agreement," as document that "made it appear as if" plaintiff were "renting the house for free." (Declaration of Patrick Shanahan in Support of Application to Extend Preliminary Injunction, ¶15.)

In August 2016, Zowine and his wife, defendant Karina Zowine, filed for bankruptcy in response to a multi-million dollar court judgment in favor of the former co-owner of Zoe Holding Co. In bankruptcy papers, the property at issue in this case was described as "corporate housing." (Complaint, ¶20.) In late 2019, MGA (a subsidiary of Zoe Holding Co.) was in negotiations to be acquired by a third party. Plaintiff alleges that, in connection with this transaction, Zowine promised plaintiff (i) a cash bonus of approximately \$7.5 million to \$8 million and (ii) the property, without any payment by plaintiff (the "House Compensation Agreement"). The promises were, allegedly, for value plaintiff had already created and also to induce plaintiff to continue working for Zoe Holding Co. (Complaint, ¶21.)

Following the sale of MGA, plaintiff was working for Covelo Group, which was another subsidiary of Zoe Holding Co. Plaintiff "continued" to lead the "San Francisco office." (Complaint, ¶23.) Plaintiff alleges that Zowine directed transfer of the Alamo house to plaintiff, but admits that it was not completed because "all parties" would be subject to an "enormous tax bill." (Complaint, ¶24.) Still, plaintiff alleges that no one refuted the House Compensation Agreement and plaintiff continued working as a "key employee." (*Ibid.*)

Plaintiff's complaint alleges he and his family treated the property as their home, "frequently" paid the property taxes, and invested significant capital (over \$100,000) into the home. (Complaint, ¶¶26-27.) The repairs and upgrades plaintiff mentions include changing the septic system to a main sewer line, remodeling the garage, painting the interior of the house, trimming redwood trees, repairs and clean up, replacing lighting fixtures, and remodeling the master bathroom. (*Ibid.*) In further reliance on both alleged agreements, plaintiff had an architect draft remodel plans, which plaintiff

then shared with Zowine, who responded that the plans looked good. (Complaint, ¶128.)

II. Proceedings Herein

According to defendants, plaintiff was served with a 60-day notice to terminate occupancy on March 21, 2025, after his employment was formally ended. On May 21, 2025, plaintiff filed his verified complaint in this matter. On June 5, 2025, he filed a notice of *lis pendens*. Plaintiff sought an injunction to enjoin defendants from moving forward on an Unlawful Detainer Case they commenced on June 17, 2025 (Case No. M825-0251).

Defendants answered and opposed the request for an injunction, arguing plaintiff was unlikely to prevail on the merits of his claim because, among other things, an oral agreement for an interest in real property is unenforceable pursuant to the Statute of Frauds. (Civil Code § 1624.) Further, they argued the only documentary evidence referenced – a letter from plaintiff’s realtor to the seller realtor, conveyed with an offer to purchase the home—did not evidence the oral agreements alleged by plaintiff. While the complaint and answer were both verified, no additional evidence, in the form of declarations or otherwise, was submitted with the moving papers or the opposition in connection with the original injunction.

The Court granted an injunction that would expire on its own terms in six months unless plaintiff moved for renewal. As a condition to issuance of the preliminary injunction, plaintiff promised to keep the property taxes current, obtain and maintain property insurance naming defendants as additional insureds, and pay for maintenance and upkeep. Plaintiff states he has done so. (Declaration of Patrick Shanahan in Support of Application for Extension of Preliminary Injunction, ¶¶48-50.)

Plaintiff now seeks to renew the injunction, a request that is was belatedly opposed by defendants, who argue plaintiff is just seeking to delay the UD action indefinitely. Plaintiff filed a reply on the merits, but argues the Court should decline to consider the opposition. The Court continued the hearing one week in order to consider both the opposition and the reply on their merits.

III. Legal Standard on Preliminary Injunction

“In deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: the likelihood the moving party ultimately will prevail on the merits, and the relative interim harm to the parties from the issuance or nonissuance of the injunction.” (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1449.) Generally, such a ruling rests in the sound discretion of the trial court. (*Id.* at 1450.) A trial court will be found to have abused its discretion only when it has “exceeded the bounds of reason or contravened the uncontradicted evidence.” (*Biosense Webster, Inc. v. Superior Court* (2006) 135 Cal.App.4th 827, 834, citations omitted.)

“An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction.” (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) The burden is on the requesting party. (*O’Connell v. Super. Ct.* (2006) 141 Cal. App. 4th 1452, 1481 [party seeking injunctive relief bears burden of showing all elements necessary to support issuance of a preliminary injunction].)

IV. Discussion

A. Contracts and the Statute of Frauds

Plaintiff’s claims are founded on the existence of two oral contracts, the House Option Agreement and the House Compensation Agreement, pleaded in the alternative. But an essential

element of any contract is consent. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811, citing Civ. Code, § 1550; 1 Witkin, Summary of Cal. Law (9th ed. 1987) Contracts, § 6, p. 44.) The consent must be mutual, and consent is not mutual unless the parties all agree upon the same thing in the same sense. (*Weddington Productions, Inc., supra*, 60 Cal.App.4th at 811, citing Civ. Code, §§ 1565, 1580, 1636.)

The Statute of Frauds requires that contracts "for the sale of real property, or of an interest therein" must be in writing. (Civil Code §1624(a)(3).) "The primary purpose of the Statute is evidentiary, to require reliable evidence of the existence and terms of the contract and to prevent enforcement through fraud or perjury of contracts never in fact made." (*Sterling v. Taylor* (2007) 40 Cal.4th 757, 766.) The statute prevents fraud and perjury by requiring more reliable evidence (in the form of a writing signed by the party to be charged) of certain types of agreements in order to enforce them. (*Seaman's Direct Buying Service, Inc. v. Standard Oil Co.* (1984) 36 Cal.3d 752, 764 [overruled on other grounds in *Freeman & Mills, Inc. v. Belcher Oil Co.* (1995) 11 Cal.4th 85, 88]; *Riley v. Bear Creek Planning Committee* (1976) 17 Cal.3d 500, 509.)

B. Plaintiff Does Not Satisfy the Statute of Frauds

A memorandum satisfies the statute of frauds if it identifies the subject of the parties' agreement, shows that they made a contract, and states the essential contract terms with reasonable certainty. (*Sterling v. Taylor* (2007) 40 Cal.4th 757, 766, citations omitted.) Here, plaintiff admits that the contracts he has alleged are oral. To the extent he produces various documents, they do not indicate any specific terms to which the parties could have agreed. On the other hand, the defendants present a contract signed by both sides, the "Residential Use Agreement," which is discussed below.

C. Exceptions

While there are some exceptions to the statute of frauds, including estoppel and part performance, neither has been shown here. The evidence does not support reliance, "unconscionable" injury, or "unjust" enrichment. (*Tenzer v. Superscope, Inc.* (1985) 39 Cal.3d 18, 27 [statute may only be avoided where "necessary to prevent either unconscionable injury or unjust enrichment."].)

Judge Douglas noted plaintiff's ability to conduct discovery in order to convince the Court that his "position has merit." But the evidence obtained and presented here does not sufficiently support plaintiff's position. As noted in the initial ruling, the letter from plaintiff's realtor is capable of both an interpretation in favor of plaintiff's theory, as well as an interpretation favoring defendants.

But the letter from the realtor is not the most recent writing on the subject. The "Residential Use Agreement" was signed by both sides here *after* plaintiff and his family had moved, in March of 2017. "The execution of a contract in writing, whether the law requires it to be written or not, supersedes all the negotiations or stipulations concerning its matter which preceded or accompanied the execution of the instrument. (Civ. Code, § 1625.) Further, the existence of mutual consent is determined by objective rather than subjective criteria. (*Ashirwad, LLC v. Bradbury* (2026) 118 Cal.App.5th 803, 809, citations omitted.)

The "Residential Use Agreement" stated that plaintiff was only *using* the home pursuant to a month-to-month lease, and that his use was contingent upon his employment with "the Company." (Notably, the identity of the "landlord" changed in various drafts, but in the draft signed it appears to refer to MGA, the entity that employed plaintiff according to plaintiff's Complaint.)

The agreement contains an integration clause and a provision explicitly stating that any

amendments must be in writing. (See Singh Decl., Ex. E, at pages ZOWINE 0011-0012 and following unnumbered page [agreement and signature page].) In light of the terms in this agreement, any subjective understanding that plaintiff may have had at the time or in the future, which was contrary to these terms, would be unreasonable and therefore insufficient to avoid the statute of frauds.

As to the alleged House Compensation Agreement, which plaintiff alleges came up with respect to MGA being acquired by a third party in 2019, plaintiff also does not establish reliance or mutual assent to any specific terms. He was already working and living in the Bay Area and the promise was, allegedly, for value plaintiff had “already created,” and to “reward” plaintiff for value created (presumably realized by Zoe Holdings in the acquisition of MGA).

While plaintiff alleges the promise was also to induce him to continue working for Zoe Holding Co., there is no evidence that he was contemplating leaving at this time. To the extent a title transfer was supposed to happen at the time the company was acquired, plaintiff does not explain why he waited years to seek compliance. Plaintiff admits that, even at the time he was terminated in June 2024, he did not ask Zowine to transfer title. (Singh Decl., ¶18.)

Plaintiff states he has taken the deposition of Eric Wong, CFO of Zoe Holding Company, Inc. (plaintiff does not attach any portion of the transcript—just counsel’s characterization of what was said). Counsel represents that Mr. Wong confirmed an understanding that the property was going to be transferred to plaintiff, but no specifics beyond that fact. Plaintiff presents no evidence of Mr. Wong’s corporate authority, or any actions that would ratify any statements made by him.

Defendants, on the other hand, present excerpts from several depositions. (Declaration of Pritpal Singh in Support of Opposition, hereinafter “Singh Decl.,” Ex. A-D.) Collectively, these excerpts show various witness’ belief that there was never any final agreement as to the terms of any property transfer and, to the contrary, that they understood the tax complications to be a continuing obstacle to formalizing any agreement regarding a transfer of the Alamo property.

Plaintiff himself testified that he was aware of tax complications with any transfer, that outside counsel was examining those issues, and that, as far as he knew, the issues were never resolved. (Singh Decl. ¶¶6-7; Ex. A, 63:19-65:19, 72:12-23.) The written discovery, including plaintiff’s responses to requests for admission and his responses to requests for production of documents, support this lack of any formal agreement. (Singh Decl., Ex. G [Responses to Requests for Production of Documents Nos. 1-5, 7-8, generally agreeing to produce all responsive documents showing defendants made promise or agreement to transfer].) The lack of any formal terms make it difficult, if not impossible, to conclude any enforceable agreement ever existed.

While plaintiff’s reply brief highlights the lack of any declaration submitted by David Zowine himself, Zowine verified the answer wherein the existence of any agreement or promise to the property was denied under oath. Further, plaintiff bears the burden to show some probability of prevailing in order to obtain injunctive relief and he could have made efforts to procure deposition testimony from Zowine in the year since the previous hearing on injunctive relief. In this time, he could have taken Zowine’s deposition or obtained responses to written discovery.

D. No Part Performance Based on Insubstantial Investment

While “allegations of substantial investment made by the plaintiff in reliance on the defendant’s promise—whether in time, effort, or money—may permit the trier of fact to consider a claim of estoppel [...], allegations of an insubstantial investment will not.” (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 26.) Plaintiff’s investments to remodel the property or perform certain maintenance

(which he contends totaled “well over \$100,000”) were insubstantial in comparison to the amount expended by defendants to purchase (\$2.15 million in March of 2016) and keep the property. (See Singh Decl., Ex. E at ZOWINE 0014-ZOWINE 0016 [noting purchase price and date]; Singh Decl., Ex. F at Request for Admission No. 28 [plaintiff admits he does not know who paid property taxes]; Ex. G [Response to Request for Production of Documents No. 16 indicating plaintiff’s agreement to produce any proof of having paid property taxes]; Shanahan Decl. at ¶¶23-29 [itemizing approximate expenditures for converting to septic, remodeling garage and bathroom, fixing a pipe, rodent control, but declining to itemize tree trimming]; Singh Decl., Ex. B at 22:14-24 [wife of plaintiff not recalling at deposition the amount spent on remodeling].) The amount invested by plaintiff is likely also insubstantial in comparison with what plaintiff might have had to pay to purchase the property himself, or pay rent elsewhere.

V. Conclusion

While a court’s analysis of any injunctive relief must include both a balancing of harms as well as probability of prevailing, it may not grant a preliminary injunction, regardless of the balance of interim harm, unless it is reasonably probable that the moving party will prevail on the merits. (*San Francisco Newspaper Printing Co. v. Superior Court* (1985) 170 Cal. App. 3d 438, 442.) Here the latter has not been satisfied. The Court finds an extension of the injunction unwarranted and denies the application.